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CITY OF BERKELEY

BERKELEY CITY COUNCIL JOINT POWERS FINANCING AUTHORITY AND

REGULAR MEETINGS

October 27, 2026

WEBVTT

1
00:00:26.150 --> 00:00:27.090
Boardroom: Okay.

2
00:00:35.960 --> 00:00:37.300
Boardroom: All right.

3
00:00:37.540 --> 00:00:56.069
Boardroom: Hello, everyone. Good evening. I know many of you are here for the 6 o'clock meeting, but we actually have a very brief matter to attend to before that. I am calling to order the Berkeley Joint Powers Financing Authority meeting. Today is Tuesday, October 27th, 2026, and it is 5.56 PM. Bless you. Can we take the roll, please?

4
00:00:56.330 --> 00:01:02.030
Boardroom: Okay, agency member Kesarwani is currently absent.

5
00:01:02.230 --> 00:01:07.299
Boardroom: Kaplan, absent. Bartlett, absent. Tragab?

6
00:01:07.400 --> 00:01:09.690
Boardroom: Present. O'Keefe. Present.

7
00:01:10.000 --> 00:01:13.959
Boardroom: Blackaby is currently absent. Luna Parra.

8
00:01:14.790 --> 00:01:16.240
Boardroom: Humber. Present.

9
00:01:16.370 --> 00:01:18.730
Boardroom: And Chair Ishii. Here.

10

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00:01:18.980 --> 00:01:21.179
Boardroom: Okay, Corbin is present.

11
00:01:21.830 --> 00:01:37.180
Boardroom: Thank you very much. So, I know we've got a 6 o'clock meeting, where we will have public comment on non-agenda matters then, but we also have a public comment on non-agenda matters for this one as well, so if anyone would like to give any public comment on non-agenda matters, please come forward.

12
00:01:40.540 --> 00:01:44.679
Boardroom: This is just for the Joint Powers Financing Authority, not for the City Council.

13
00:01:48.020 --> 00:01:48.890
Boardroom: Yeah, they're great.

14
00:01:49.850 --> 00:01:53.559
Boardroom: Within the purview of the Joint Powers Financing Authority.

15
00:01:54.070 --> 00:01:54.840
Boardroom: Yes.

16
00:01:58.060 --> 00:02:00.400
Boardroom: Okay.

17
00:02:00.750 --> 00:02:03.599
Boardroom: There's no hand raised online.

18
00:02:03.820 --> 00:02:20.870
Boardroom: So, there's no public comment. Okay. No non-agenda public comment. Okay, so now we're moving on to consent calendar, and I will see if there are any comments on the consent calendar for our City Council members or our Joint Power Authorities.

19
00:02:21.440 --> 00:02:27.199
Boardroom: Agency members. Agency members, yes, thank you. Are there any comments?

20
00:02:28.920 --> 00:02:29.740
Boardroom: No.

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21
00:02:29.910 --> 00:02:40.190
Boardroom: Okay, is there any public comment on consent, calendar or information items? Only again, we are currently in the Berkeley Joint Powers Financing Authority meeting.

22
00:02:43.080 --> 00:02:46.009
Boardroom: Any online? No, nothing online.

23
00:02:46.270 --> 00:02:47.320
Boardroom: Okay.

24
00:02:47.520 --> 00:02:52.250
Boardroom: Our consent calendar just has the minutes for approval.

25
00:02:52.510 --> 00:03:00.290
Boardroom: From the December 2, 2025 meeting, so I will entertain a motion to approve the consent calendar.

26
00:03:00.880 --> 00:03:01.909
Boardroom: So moved.

27
00:03:03.230 --> 00:03:06.880
Boardroom: Is there a second? Second from Councilmember O'Keefe.

28
00:03:07.290 --> 00:03:12.630
Boardroom: All right. Is there any opposition to approving the consent calendar?

29
00:03:13.340 --> 00:03:16.090
Boardroom: Okay, the consent calendar is approved.

30
00:03:16.380 --> 00:03:21.200
Boardroom: Additionally, are there any other public comments on items not listed on the agenda?

31
00:03:24.200 --> 00:03:26.589
Boardroom: Any online? Nothing online.

32
00:03:27.590 --> 00:03:32.489

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Boardroom: All right. Oh, this is the Joint Powers Financing Authority, not the city council.

33
00:03:33.550 --> 00:03:34.400
Boardroom: Okay?

34
00:03:34.560 --> 00:03:35.520
Boardroom: All right.

35
00:03:35.670 --> 00:03:37.579
Boardroom: Is there a motion to adjourn?

36
00:03:38.320 --> 00:03:39.970
Boardroom: So moved. Second.

37
00:03:40.160 --> 00:03:42.520
Boardroom: All right, any opposition to adjournment?

38
00:03:43.090 --> 00:03:49.060
Boardroom: We are adjourned. Thank you very much. We will be back in one minute for this next meeting.

39
00:03:53.730 --> 00:03:54.490
Boardroom: Okay.

40
00:04:12.630 --> 00:04:13.340
Boardroom: you know…

41
00:04:51.710 --> 00:04:52.940
Boardroom: Oh my goodness.

42
00:04:59.100 --> 00:05:00.099
Boardroom: I'm going to be straight.

43
00:05:14.080 --> 00:05:15.460
Boardroom: I did just that.

44
00:05:19.130 --> 00:05:19.810
Boardroom: No worries.

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45
00:05:42.030 --> 00:05:44.750
Boardroom: That's why it's tricky.

46
00:05:48.980 --> 00:05:49.640
Boardroom: Yes.

47
00:05:57.220 --> 00:05:57.930
Boardroom: Okay.

48
00:05:58.060 --> 00:05:58.830
Boardroom: Yes.

49
00:06:05.870 --> 00:06:06.650
Boardroom: Okay.

50
00:06:08.370 --> 00:06:09.459
Boardroom: We're ready.

51
00:06:09.690 --> 00:06:26.750
Boardroom: Okay, everyone. Well, welcome back. It's a minute later, and I'm calling to order the Berkeley City Council meeting. Today is Tuesday, October 27th, 2026, and it is 6.01 PM. Can we start off with the roll, please? Okay, councilmember…

52
00:06:27.660 --> 00:06:30.519
Boardroom: Let's see, let me make sure Councilmember Kesarwani, I don't see.

53
00:06:30.740 --> 00:06:38.739
Boardroom: see Okay. Councilmember Kesarwani is currently absent. Councilmember Taplin? Present.

54
00:06:39.050 --> 00:06:40.180
Boardroom: is here.

55
00:06:40.360 --> 00:06:41.340
Boardroom: Bartlett?

56
00:06:42.070 --> 00:06:44.060
Boardroom: He's currently absent. Tregub?

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57
00:06:44.530 --> 00:06:50.010
Boardroom: Present. O'Keefe? I'm here. Blackaby? Here. Unupara? Here.

58
00:06:50.190 --> 00:06:54.580
Boardroom: Humbert? Present. And Mayor Ishii? Here. Okay, quorum is present.

59
00:06:54.690 --> 00:06:57.610
Boardroom: Thank you very much. Okay, so…

60
00:06:57.880 --> 00:07:06.189
Boardroom: We have some ceremonial matters this evening, and I'd like to start us off with the Ava Community Energy presentation. Hi, welcome.

61
00:07:06.580 --> 00:07:07.759
Boardroom: Come on up!

62
00:07:09.460 --> 00:07:10.790
Boardroom: Umm.

63
00:07:10.980 --> 00:07:24.780
Boardroom: Okay. I have been told you have 10 minutes, inclusive of questions, for the presentation. I will move quickly. Thank you so much, Mayor Ishii and Councilmembers for the time this evening to present on AVA Community Energy.

64
00:07:25.040 --> 00:07:33.060
Boardroom: I'm going to wait for the slides to get popped up, I guess. Is that — Perfect.

65
00:07:35.980 --> 00:07:40.420
Boardroom: Great, and you can go to the… Next slide when you're ready.

66
00:07:42.410 --> 00:07:57.210
Boardroom: Perfect. Okay, so I've got about 10 slides. I'll keep it to under 10 minutes to leave some time for questions. My name is Howard Chang. I'm the CEO for Ava Community Energy, and we are your nonprofit local power provider for electricity generation services.

67
00:07:57.210 --> 00:08:10.330

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Boardroom: The reason why I'm here today is to present on our inaugural impact report, which is the first time we've issued this over the last 10 years or so. It just provides a little bit of background on who AVA is, how we operate, and some key achievements since launching.

68
00:08:10.640 --> 00:08:12.060
Boardroom: Next slide, please.

69
00:08:15.430 --> 00:08:24.430
Boardroom: Great. So here you have just a map of our territory. You may recall that we launched originally as East Bay Community Energy when we just served Alameda County.

70
00:08:24.430 --> 00:08:35.580
Boardroom: And over the years, we've expanded into San Joaquin County, hence the renaming to AVA Community Energy, serving from Alameda to the Valley. We are what's called a community choice aggregator.

71
00:08:35.580 --> 00:09:00.530
Boardroom: Again, we are, structured as a Joint Powers Authority representing 18 members across the service area, and we are the default electricity generation service provider, 18 members in total, and, thank you to Council member Treu for serving on our board specifically, your engagement and leadership's, very much appreciated, and Council member Luna Parra as the alternate as well. I know you're not oftentimes called upon to sit there given his presence, but appreciate when you do stand.

72
00:09:00.530 --> 00:09:01.990
Boardroom: didn't.

73
00:09:02.230 --> 00:09:04.039
Boardroom: We can go to the next slide, please.

74
00:09:04.700 --> 00:09:26.929
Boardroom: So what is a community choice aggregator? I'm not going to read through this entire slide. I'll keep this one a little briefer. But we are structured as a JPA. Typically, when you think about electricity utility, you think about an investor-owned utility. PG&E obviously has been the historical electricity provider in this area. In some areas, such as the city of Alameda, they have a publicly-owned utility. And another example of that is SMUD.

75
00:09:26.930 --> 00:09:41.719

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Boardroom: And then, of course, we have other types of public agencies such as AC Trans and EBMUD. And EVA is a little unique to all of those. We are the electricity generation service provider. Our existence gives our customers some level of choice in who they get their electricity from.

76
00:09:41.740 --> 00:09:54.510
Boardroom: In the next slide, I'll elaborate a little bit on that. So we specifically are providing your wholesale electricity power. We're choosing that. We're procuring that on your behalf. And we're providing electricity and energy services and products as well.

77
00:09:54.510 --> 00:10:14.470
Boardroom: PG&E actually continues to be your delivery service provider. So they're managing your wires, your lines, transmission, distribution, and meters. All customers can get a PG&E bill. And if you look closely at that bill, you'll see that there are line items related to AVA Community Energy charges for the wholesale energy that's provided, the generation services that are provided.

78
00:10:14.910 --> 00:10:31.010
Boardroom: All customers do have the option to opt out of our service and return to PG&E service, though, as you can see in the stats on the right, we retain about 96% of all customers because we tend to be more affordable and greener by nature in terms of what products we procure.

79
00:10:31.010 --> 00:10:40.409
Boardroom: We serve a total of about 760,000 accounts. That's a population of a little over 2 million people. A couple of the stats I'll point out here is we have provided.

80
00:10:40.450 --> 00:10:51.939
Boardroom: Over $180 million in savings to our customers since we've launched, and we've reinvested over $100 million as well through our local service territory through procurement of both power as well as other sort of goods contracts.

81
00:10:52.660 --> 00:10:53.859
Boardroom: Next slide, please.

82
00:10:56.170 --> 00:11:20.740
Boardroom: The other aspect of choice that we always provide our customers is two electricity products we call Bright Choice and Renewable 100. Berkeley is defaulted into the Renewable 100 plan. About a third of our members choose that plan to default to. It's at a modest premium for

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PG&E, but is 100% renewable energy on a net annual basis. There's also a product called Bright Choice. That product, at least in 2025, is roughly 55% renewable.

83
00:11:20.740 --> 00:11:41.790
Boardroom: energy, and it has some additional mix of large hydro, nuclear power, as well as some market power, which is generally, unspecified, predominantly natural gas, and that's been at a, half percent discount relative to PG&E. You can see in the bottom right, their, power content is roughly 33% renewable energy, a lot of nuclear, a lot of natural gas in that mix.

84
00:11:42.260 --> 00:11:43.479
Boardroom: Next slide, please.

85
00:11:46.640 --> 00:12:09.520
Boardroom: This is a complicated slide. I tend to get a little bit complex at times. I'm just going to give a few high level points on this one is that generation services. The services that Ava provides are about one third of the bill. Pg. And E's delivery services are about 2 thirds of the bill. We know that affordability has been significant challenges over the last 5 plus years, as prices have increased. A lot of that is

86
00:12:09.520 --> 00:12:11.770
Boardroom: wildfire hardening related.

87
00:12:11.770 --> 00:12:36.549
Boardroom: Obviously we're here in California, unfortunately we all know the, the risks and, and, and damage of wildfire. A lot of that increase in cost has been driven by that. On the generation side of the bill, which is our side of the bill, there is also volatility there obviously year to year with different energy products and what we're procuring. A lot of that is driven by how hot the temperatures are or how cold the temperatures are driving load spikes, and of course, some of that is driven off of the specific energy.

88
00:12:36.550 --> 00:12:49.419
Boardroom: products that we're choosing. What we have here is just a historical graph of what energy rates have been on the generation side of the bill. In '22 to '25 period, you have seen some spikes. In '26, it's come back down.

89
00:12:49.480 --> 00:13:12.680
Boardroom: But one technical piece I'll just highlight here is for generation costs, there's the orange portion, which is AVIS-specific

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charge, and then the yellow portion, which is called PCIA, the Power Charge Indifference Adjustment. That's an exit fee that customers continue to pay to the IOUs, to PG&E in this case. When we speak about discount in our costs, we're always talking about all the generation-related costs that are there to be fully transparent to our customers.

90
00:13:13.600 --> 00:13:14.670
Boardroom: Next slide, please.

91
00:13:15.700 --> 00:13:31.320
Boardroom: I'm not going to read through all of these numbers, but just a quick summary of some stats within Berkeley. We serve about 55,000 accounts with a participation rate about 97%, and we provide about $5.5 million of savings to customers over time.

92
00:13:31.430 --> 00:13:38.719
Boardroom: You can see about 10% of customers have solar, about 10% have EVs, and the pie charts kind of break down the various customer segments there.

93
00:13:39.660 --> 00:13:40.730
Boardroom: Next slide.

94
00:13:40.890 --> 00:14:05.680
Boardroom: There's three more slides that I'll just quickly breeze through. I'm not going to read through all of this, but I did want to provide it for reference. This slide is a summary of some of the clean energy infrastructure investments that we've made in the community, as well as grants. I'll highlight maybe two. One is AVA's Critical Municipal Facilities Program. That's where we're building solar and storage at eight different municipal sites throughout our territory. Berkeley is one of the four cities that we've launched that first phase of work.

95
00:14:05.680 --> 00:14:16.009
Boardroom: with. We're wrapping up the Live Oak Rec Center, installation right now. As a Berkeley resident myself, really, really thrilled and excited for that local investment and what we're able to do there.

96
00:14:16.010 --> 00:14:25.529
Boardroom: The last bullet I'll highlight is we have secured CalEVIP funding for a variety of local fast chargers and level 2 chargers throughout Berkeley.

97
00:14:26.540 --> 00:14:27.730

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Boardroom: Next slide.

98
00:14:28.440 --> 00:14:45.429
Boardroom: This is — these are three programs that are actively out in market. You can find more information on these in our website. We've got a program called Smart Home Charging, which is for folks that charge their EVs at home. There's an upfront and ongoing incentive oriented towards participating in that program.

99
00:14:45.430 --> 00:15:02.150
Boardroom: There's our AVA Bike Electric program, which is actually up to $13 million in funding that we just extended to add some more funding to that program. It's been very, very popular. And our last one is our Smart Home Battery and Resilience Hubs program, which is providing an incentive for solar and storage installations at residential homes.

100
00:15:03.660 --> 00:15:25.529
Boardroom: And then this is the very last slide after this. Again, a little bit of an eye chart here, but just there's a wide variety of electricity products and services that we provide to our customers. This is a smattering of them. I'll highlight that we've provided over $100,000 incentives for residential customers to have heat pump water heaters installed at their homes. We know that there's an active air district.

101
00:15:25.530 --> 00:15:30.549
Boardroom: ruling that's sort of in flight right now. So we're continuing to evaluate different mechanisms to support.

102
00:15:30.550 --> 00:15:47.480
Boardroom: building electrification. Another one I'll highlight is over 900 AVA bike electric e-bike rebates that we've provided, and we have quite a bit of participation in our smart home charging program as well at over 200 customers. So really excited about these different types of offerings and different ways to engage with customers.

103
00:15:48.300 --> 00:15:56.350
Boardroom: And the last slide is just a call-out for a link to the hard copy impact report, which I believe you all have in front of you, but there's a link for soft copy for those that want to reference it.

104
00:15:56.800 --> 00:15:58.840
Boardroom: That's it for me. Thank you so much for the time.

105
00:15:58.920 --> 00:16:16.039

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Boardroom: Thank you so much. That was very efficient and really informative. I really appreciate the work that you all are doing. And I especially want to highlight your electric bike program and encourage anyone here who's interested and may be able to apply to this program to take a look at the AVA Energy website.

106
00:16:16.040 --> 00:16:24.109
Boardroom: And so great to see so many Berkeley shops are involved in that program as well. Anyone have questions from council members?

107
00:16:25.500 --> 00:16:35.119
Boardroom: No, thank you so much. I really appreciate you coming and presenting to us and for the impact report and for your great work. Absolutely. Thank you so much. Did you think of a question? Go ahead.

108
00:16:35.640 --> 00:16:38.249
Boardroom: Referring back to your, the slide where you mentioned

109
00:16:38.310 --> 00:17:03.209
Boardroom: the money is reinvested into the community. I'm curious if you could tell us more about that. Sure. I so there's a wide variety of examples there, but certainly the the programs that we reference are one form of that direct engagement with our customers both at the residential and commercial scale. The different types of incentive programs that we have. Too many to name right now, but I can give you some examples of the bullets there. We also procure wholesale energy locally. So we have within our service

110
00:17:03.210 --> 00:17:19.270
Boardroom: territory, a large wholesale wind project in the Altamont Pass. We also have a large solar farm in Livermore, in the Livermore area. So there's different forms of local procurement, actually in the form of energy, as well as other sort of goods and services we try to procure as much locally as possible.

111
00:17:21.970 --> 00:17:24.349
Boardroom: Thank you. Great. Thank you so much.

112
00:17:24.750 --> 00:17:30.479
Boardroom: Mayor, Councilmember Kesarwani has joined the meeting, so we just need to do the,

113
00:17:31.570 --> 00:17:34.450
Boardroom: The remote participation script, real quick.

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114
00:17:37.370 --> 00:17:45.999
Boardroom: So, Councilmember Kesarwani is participating in the meeting remotely pursuant to the Brown Act under the just cause justification.

115
00:17:46.170 --> 00:17:51.799
Boardroom: A quorum of the Council is participating in person at the meeting location noticed on the agenda.

116
00:17:51.930 --> 00:18:06.010
Boardroom: And Councilmember Kesarwani, please provide a general description of the circumstances relating to your need to appear remotely, but please do not disclose any medical diagnosis, disability, or other confidential medical information.

117
00:18:06.860 --> 00:18:10.809
Rashi Kesarwani: Yes, my need to appear remotely relates to illness.

118
00:18:10.810 --> 00:18:26.520
Boardroom: Okay, thank you. And, Councilmember Kesarwani, please disclose, if there are any individuals 18 years of age or older present, at your remote location, in the room with you, and the nature of their relationship to you.

119
00:18:27.000 --> 00:18:28.909
Rashi Kesarwani: There's no one in the room with me.

120
00:18:28.910 --> 00:18:35.970
Boardroom: Okay, thank you, and Councilmember Kesarwani will participate through both audio and visual technology for the duration of the meeting.

121
00:18:36.640 --> 00:18:52.520
Boardroom: Thank you, Mayor. Thank you so much, Mr. City Clerk. All right, so our next ceremonial matter this evening is an adjournment in memory and proclamation honoring, excuse me, honoring the life of Nikki Williams, Executive Director Emeritus of BYA.

122
00:18:52.520 --> 00:19:01.459
Boardroom: If you are here for this item, feel free to come up here to the podium. I think her son is here. Hello! Good evening. Thank you so much for coming.

123

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00:19:04.690 --> 00:19:05.710
Boardroom: Okay.

124
00:19:06.760 --> 00:19:08.190
Boardroom: Thank you.

125
00:19:08.770 --> 00:19:12.210
Boardroom: Honoring the life and legacy of Nikki Williams.

126
00:19:12.450 --> 00:19:30.039
Boardroom: Whereas the city of Berkeley pauses with a profound sense of loss and deep gratitude to honor the extraordinary life of Mrs. Nikki Williams, executive director emeritus of Berkeley Youth Alternatives, BYA, who departed this life on the morning of Thursday, August 13th, 2026.

127
00:19:30.590 --> 00:19:42.840
Boardroom: And whereas under her visionary leadership, BYA expanded far beyond traditional boundaries, pioneering a holistic, wraparound approach that integrated educational support, behavioral health.

128
00:19:43.000 --> 00:19:44.310
Boardroom: Counseling?

129
00:19:44.470 --> 00:19:52.769
Boardroom: Family stability and basic needs under one umbrella to ensure every young person had the comprehensive tools required to thrive.

130
00:19:52.770 --> 00:20:09.010
Boardroom: And whereas her tireless dedication transformed BYA into a vital, trusted anchor institution in Berkeley, leaving an indelible imprint on thousands of individual lives and building a resilient foundation that continues to strengthen our entire community today.

131
00:20:09.360 --> 00:20:23.919
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby recognize and honor the remarkable legacy of Nikki Williams, celebrating her monumental contributions to youth empowerment and community healing.

132
00:20:24.170 --> 00:20:35.520

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Boardroom: Our city extends its deepest, heartfelt condolences to her family, loved ones, and the entire BYA community as we gather to remember her vibrant spirit and lasting impact.

133
00:20:36.010 --> 00:20:38.419
Boardroom: Thank you. Thank you. Thank you.

134
00:20:51.060 --> 00:21:04.579
Boardroom: Would you like to say a few words? Yes, and I understand I have 10 minutes, is that right? Well, you gave Ava 10 minutes. So, Mayor Ishii, members of the City Council and the Berkeley community, thank you so much.

135
00:21:04.880 --> 00:21:12.240
Boardroom: On behalf of my family, This is a profound honor for my mom.

136
00:21:12.530 --> 00:21:15.839
Boardroom: You know, as I reflect on my mother's life, I keep…

137
00:21:16.390 --> 00:21:20.210
Boardroom: Coming back to a few memories that, capture who she was.

138
00:21:20.710 --> 00:21:25.320
Boardroom: I remember her sitting in council meetings late into the evening.

139
00:21:25.850 --> 00:21:32.449
Boardroom: Sometimes until 2AM in the morning, and determined to make sure that contracts supporting her kids

140
00:21:32.990 --> 00:21:34.639
Boardroom: And programs were approved.

141
00:21:35.900 --> 00:21:43.460
Boardroom: I also remember one meeting, when she became so frustrated with the city manager, Phil Kamilar.

142
00:21:43.830 --> 00:21:48.310
Boardroom: over funding for her programs that she threatened him.

143
00:21:48.720 --> 00:21:52.099

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Boardroom: I had to quickly whisk her away.

144
00:21:52.520 --> 00:21:59.390
Boardroom: Before things escalated, I think Phil and my mom and I had a great chuckle about that, years later.

145
00:22:00.810 --> 00:22:05.330
Boardroom: I also remember her going to council members, you know, one by one.

146
00:22:06.030 --> 00:22:09.889
Boardroom: Making her case, advocating fiercely for the children, youth.

147
00:22:10.440 --> 00:22:13.689
Boardroom: And families we served. She was a tough lady.

148
00:22:14.700 --> 00:22:16.820
Boardroom: Did like to hear the word no.

149
00:22:17.200 --> 00:22:21.770
Boardroom: But my fondest memories… Of my mom.

150
00:22:23.330 --> 00:22:27.470
Boardroom: are not here in City Hall or in the city corridors.

151
00:22:28.910 --> 00:22:36.860
Boardroom: There, of walking into… The kitchen at Berkeley Youth Alternatives and finding her preparing snacks for the kids.

152
00:22:37.610 --> 00:22:39.879
Boardroom: And seeing her with a young person.

153
00:22:40.220 --> 00:22:44.519
Boardroom: Offering encouragement, counseling them through life's challenges.

154
00:22:45.170 --> 00:22:48.690
Boardroom: And, quite honestly, giving them some tough love.

155
00:22:49.970 --> 00:22:52.069

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Boardroom: She'd tell them to stop whining.

156
00:22:52.200 --> 00:22:55.230
Boardroom: Stay focused.

157
00:22:55.490 --> 00:22:57.139
Boardroom: And keep pushing forward.

158
00:22:57.780 --> 00:22:59.500
Boardroom: Because she believed in them.

159
00:23:00.000 --> 00:23:04.400
Boardroom: Even when they or others didn't believe in themselves. That was my mother.

160
00:23:05.040 --> 00:23:09.899
Boardroom: She was a fighter with an enormous heart and very high expectations.

161
00:23:10.250 --> 00:23:13.370
Boardroom: She could be tough, demanding, relentless.

162
00:23:13.950 --> 00:23:16.189
Boardroom: But everything she did came from her heart.

163
00:23:16.960 --> 00:23:19.110
Boardroom: She didn't simply have a job.

164
00:23:21.100 --> 00:23:22.719
Boardroom: She had a calling.

165
00:23:23.330 --> 00:23:25.639
Boardroom: And she loved what she called her work.

166
00:23:26.170 --> 00:23:30.180
Boardroom: And she continued doing it until she physically could no longer do so.

167
00:23:33.000 --> 00:23:35.500
Boardroom: My mother understood something profound.

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168
00:23:36.010 --> 00:23:38.600
Boardroom: Every young person deserves someone.

169
00:23:38.820 --> 00:23:41.170
Boardroom: Who refuses to give up on them.

170
00:23:42.120 --> 00:23:45.769
Boardroom: And for countless young people in Berkeley, she was that someone.

171
00:23:46.320 --> 00:23:52.030
Boardroom: So tonight, As you adjourn this meeting in her honor, I hope we remember not only what she accomplished.

172
00:23:52.680 --> 00:23:55.910
Boardroom: But the lives she touched and the young people.

173
00:23:56.030 --> 00:24:03.069
Boardroom: whose future she helped to really change. Mom, Your work isn't done.

174
00:24:03.650 --> 00:24:06.700
Boardroom: But your legacy lives on. So I want to thank

175
00:24:06.860 --> 00:24:10.930
Boardroom: Our family and friends who came, thank you so much for being here.

176
00:24:17.140 --> 00:24:23.489
Boardroom: My mom's church family, Berkeley Mount Zion Missionary Baptist Church for their continuous support of our family.

177
00:24:26.900 --> 00:24:28.750
Boardroom: And I want to thank you, Mayor.

178
00:24:28.880 --> 00:24:37.990
Boardroom: Ben, Terry, other members of the council, and my dear friend Julie Sinai, who put all this together. Thank you for this beautiful honor.

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179
00:24:47.810 --> 00:24:51.150
Boardroom: If anyone from the group would like to come take a photo with us, you can.

180
00:24:56.140 --> 00:24:56.820
Boardroom: Okay.

181
00:25:00.000 --> 00:25:02.720
Boardroom: If you want to join us for the photo, you can. It's up to you.

182
00:25:03.240 --> 00:25:05.179
Boardroom: Don't want to come up for the photo? Come on.

183
00:25:05.590 --> 00:25:08.579
Boardroom: There's so many folks coming to support her, I feel like.

184
00:25:09.250 --> 00:25:12.289
Boardroom: I'm well, yeah, thank you. How are you? It's good to see you.

185
00:25:13.350 --> 00:25:21.000
Boardroom: Dr. Kevin, you forgot to say who you were. They've introduced myself.

186
00:25:21.450 --> 00:25:22.630
Boardroom: me your father's

187
00:25:25.740 --> 00:25:27.489
Boardroom: Yeah, yeah, sure, sure, sure.

188
00:25:28.190 --> 00:25:32.589
Boardroom: Hi, how are you? Good, hello, hello.

189
00:25:42.020 --> 00:25:43.400
Boardroom: Anybody with me?

190
00:25:43.730 --> 00:25:44.639
Boardroom: There we go.

191
00:25:48.680 --> 00:25:49.340

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Boardroom: All right.

192
00:26:11.910 --> 00:26:12.939
Boardroom: Thank you, Kerry.

193
00:26:16.520 --> 00:26:17.519
Boardroom: Yeah, thank you.

194
00:26:26.470 --> 00:26:27.490
Boardroom: I'm sorry.

195
00:26:30.200 --> 00:26:30.950
Boardroom: Yes.

196
00:26:34.830 --> 00:26:36.069
Boardroom: That's right.

197
00:26:38.820 --> 00:26:42.029
Boardroom: Thank you all so much for coming, and…

198
00:26:42.230 --> 00:26:56.120
Boardroom: Thank you, I'm proud that we're able to adjourn in memory of Nikki Williams, and for those who did not know, that was Kevin Williams, her son, who also ran BYA. So, thank you, thank you so much.

199
00:26:56.120 --> 00:27:04.730
Boardroom: All right. We are moving on to our city manager comments and on deck is our city auditor who is here. So thank you.

200
00:27:05.560 --> 00:27:18.650
Boardroom: Thank you, Madam Mayor. I just have one thing, which is, on your consent calendar tonight, I need to remove item 22B, which is the, City Manager Companion Report for the

201
00:27:18.840 --> 00:27:33.499
Boardroom: ordinances governing special events, and I would request that you refer 22A back to the Agenda and Rules Committee to schedule for a future date. We have some more work to do with the stakeholder groups to make sure we're really aligned on this, and I just want a little bit more time.

202

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00:27:33.760 --> 00:27:41.079
Boardroom: Thank you very much. And I'm sorry, Mr. City Clerk, can you remind me to pull it and move it? Do we need a vote to do so?

203
00:27:41.970 --> 00:27:50.739
Boardroom: Well, you can do that as part of the action on the consent calendar. Okay, so whoever moves for the consent calendar, if you're so inclined, you can request that as well.

204
00:27:51.010 --> 00:27:56.350
Boardroom: All right. Very good. Thank you, Mr. City manager. All right, Madam City Auditor.

205
00:27:56.380 --> 00:28:12.670
Boardroom: All right. Good evening, everyone. Tonight's agenda includes two items that I want to talk about. Item number 25, which is on the consent calendar, amending the municipal code to require competition for service contracts.

206
00:28:12.720 --> 00:28:21.819
Boardroom: And there's also an information item on the Public Work Department's progress implementing recommendations from our 2025 leases follow-up report.

207
00:28:22.630 --> 00:28:35.530
Boardroom: So first, I just wanted to say item 25. I'm happy to see the proposed amendment to the Berkeley Municipal Code, which will require procurement through competitive solicitation for all service

208
00:28:35.530 --> 00:28:42.900
Boardroom: contracts. These are city contracts for professional services and other services greater than $100,000.

209
00:28:43.330 --> 00:28:50.489
Boardroom: This item addresses two key recommendations from our non-competitive contracts audit, which was released in February.

210
00:28:50.820 --> 00:29:02.169
Boardroom: Competition among contractors helps to ensure that the city is accountable for public funds spent on contracts and can get the best value and best fit for Berkeley residents.

211
00:29:02.580 --> 00:29:21.149

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Boardroom: Best value and fit not only considers cost, but ensures that contractors are qualified, skilled, and aligned with Berkeley values. By having a public, transparent process, the public and potential vendors know what the city is prioritizing for that solicitation.

212
00:29:21.260 --> 00:29:31.669
Boardroom: Having this process codified in the municipal code does not preclude current vendors from participating, but also encourages new vendors to also participate.

213
00:29:32.210 --> 00:29:36.099
Boardroom: What did our audit find? Well, the city has already

214
00:29:36.100 --> 00:29:54.989
Boardroom: the city does have an internal established process for competitive… for competition, such as requests for proposals, requests for qualifications, invitation for bids, etc. We did identify several large contracts that did not go through the competitive process.

215
00:29:55.170 --> 00:30:03.439
Boardroom: This could be because neither the city charter nor the municipal code explicitly requires service contracts to be competitive.

216
00:30:03.600 --> 00:30:11.899
Boardroom: In the audit, we did recommend City Council update this section to require competition for service contracts that City Council approves.

217
00:30:12.400 --> 00:30:27.199
Boardroom: Since our audit — secondly, our audit also found that city attorney contracts for legal services did not go to city council for approval. So we also recommended regular reporting to increase transparency of spending on legal services contracts.

218
00:30:27.550 --> 00:30:35.179
Boardroom: I'm really glad to see the proposed items. The proposed item today on number 25

219
00:30:35.200 --> 00:30:42.539
Boardroom: Also does request the city attorney's office to report to council on legal services contracts and amendments.

220
00:30:42.540 --> 00:30:58.040

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Boardroom: I just want to thank Councilmember Kesarwani for authoring this item, and Mayor Ishii, and Councilmember Taplin, and Councilmember Bartlett for co-sponsoring and taking this important step to promote accountability, transparency, and fairness in city contracting.

221
00:30:59.420 --> 00:31:18.080
Boardroom: And just quickly on leases, in 2025, in January, we released a report to revisit our office's 2009 audit of city leases. In this report, we assessed the implementation status of recommendations from that audit, and we found that the city still faced many of the same issues.

222
00:31:18.080 --> 00:31:20.520
Boardroom: 20, 16 years later.

223
00:31:21.030 --> 00:31:39.289
Boardroom: Since the last update, which was a year ago, August, or October 2025, the department has partly implemented our recommendation to assess if existing systems can be used to finalize the inventory of city leases by identifying a new property management software.

224
00:31:39.400 --> 00:31:43.989
Boardroom: According to Public Works, the software is estimated to be implemented in 3 months.

225
00:31:44.140 --> 00:31:48.289
Boardroom: This action can improve strategic management of city-owned property.

226
00:31:48.540 --> 00:31:51.430
Boardroom: Thank you to Public Works for moving that forward.

227
00:31:51.570 --> 00:32:10.020
Boardroom: While there has been progress, there still, has been… there's still 7 out of 8 recommendations that has, no change in status, and we look forward to seeing more progress on those, recommendations, including having a complete central inventory of leases.

228
00:32:10.170 --> 00:32:16.079
Boardroom: by the next update, which is one year from now in fall 2027. Thank you very much.

229
00:32:16.590 --> 00:32:22.880

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Boardroom: Thank you, Madam City Auditor. Thank you very much. Is there any public comment on non-agenda matters?

230
00:32:26.970 --> 00:32:29.519
Boardroom: Okay, so we'll pick, 5…

231
00:32:29.770 --> 00:32:38.839
Boardroom: Cards, for the in-person, commenters, and then we will go to the first

232
00:32:39.080 --> 00:32:46.660
Boardroom: Five hands raised, on the Zoom. So, the first… 5 for in-person.

233
00:32:47.460 --> 00:32:48.490
Boardroom: R…

234
00:33:08.750 --> 00:33:17.579
Boardroom: We have Steve Tracy… Looks like Londell Porter, Carol Morozovic.

235
00:33:17.950 --> 00:33:23.690
Boardroom: Jennifer Cogley, And… Cantrell Killens?

236
00:33:25.490 --> 00:33:27.020
Boardroom: Didn't come up in any order.

237
00:33:28.070 --> 00:33:34.899
Boardroom: Those are the… In-person speakers for non-agenda public comment.

238
00:33:47.800 --> 00:33:52.029
Boardroom: Go ahead. Good evening. I'm a Berkeley resident.

239
00:33:52.460 --> 00:34:00.440
Boardroom: and property owner There is a rumor going around that Chief Sprague is resigning.

240
00:34:01.050 --> 00:34:09.250
Boardroom: And… This causes me great concern, as there are two measures on the ballot that depend

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241
00:34:09.889 --> 00:34:14.400
Boardroom: on consistency and stability in the fire department.

242
00:34:15.190 --> 00:34:20.889
Boardroom: So, I'm I'm calling on either Chief Sprag or the city manager.

243
00:34:21.690 --> 00:34:29.940
Boardroom: council to please issue a public statement before the election, as this is a material event.

244
00:34:30.110 --> 00:34:34.000
Boardroom: that should be… announced before the election.

245
00:34:34.139 --> 00:34:35.010
Boardroom: Thank you.

246
00:34:41.760 --> 00:34:51.589
Boardroom: Hello. Good evening, Mayor, city council members. I'm here on behalf of the BCVI team in full support of extending our contract until December.

247
00:34:51.850 --> 00:34:52.540
Boardroom: Thank you.

248
00:35:01.570 --> 00:35:02.260
Boardroom: Okay.

249
00:35:02.710 --> 00:35:20.420
Boardroom: All right, great, good evening, to Madam Mayor and to the Council. I'm here on behalf of Live Free. We already know that you all are determined to, make the amendments on, the contract. Thank you, Mayor, for the $200,000 allocation. We know that at that time, that was like giving us a million dollars.

250
00:35:20.420 --> 00:35:44.570
Boardroom: Considering the budget crisis, we also just wanna speak to the fact that we wanna remain in the city of Berkeley. We wanna continue to be a part of the public safety conversation. We wanna continue to be present. We wanna make sure that our presence is felt. We are doing great work within the city of Berkeley and wanna continue to do so. We are raising money. I came here not to, advise you all to, to vote yes on

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something that you probably will already, but to personally invite you all.

251
00:35:44.570 --> 00:36:00.570
Boardroom: to our fundraising event on November 7th, which is, put together by our neighbors, and it'll be right in front of our corridor. We're hoping to see folks out. This is a community event, so to all the public who's listening, please come out November 7th, 1 to 6 p.m.

252
00:36:00.800 --> 00:36:04.620
Boardroom: 3356 Atline Street, Berkeley.

253
00:36:04.740 --> 00:36:07.239
Boardroom: Thank you. I will see you there.

254
00:36:11.470 --> 00:36:20.460
Boardroom: Hello, Council. My name is Jennifer Cogley, and I'm representing Bayer Healthcare in West Berkeley. Bayer is Berkeley's largest private sector employer.

255
00:36:20.490 --> 00:36:33.330
Boardroom: The majority of our 850 employees are people of color, and the majority of our people do not have college degrees. We provide quality jobs for people who are making treatments.

256
00:36:33.580 --> 00:36:44.849
Boardroom: I'm here because the conditions on Grayson Street have deteriorated so much that some of our vendors are refusing to use that road to bring us the items we need.

257
00:36:45.120 --> 00:36:53.069
Boardroom: To make medicines, we need policies that ensure our public rights of way can still be used for their intended purposes.

258
00:36:53.370 --> 00:37:01.989
Boardroom: Council, please help us serve our patients by addressing critical safety issues on our streets in Berkeley. Thank you.

259
00:37:10.880 --> 00:37:27.149
Boardroom: Has you considered various homeless bans? I want to bring to your attention at a bus stop last week, I started just talking to somebody, and it turned out that he has worked as a chef for UC Berkeley for 11 years now.

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260
00:37:27.150 --> 00:37:32.699
Boardroom: A few years back, he and his wife as a CNA were living outside in a vehicle.

261
00:37:32.710 --> 00:37:48.939
Boardroom: For a couple of years. And there are individuals like that. As someone told Council a couple of years ago, he moved to Berkeley to be an engineer at Lawrence Livermore and lived the first 7 years in his vehicle. We have people

262
00:37:48.940 --> 00:38:02.659
Boardroom: working at jobs. I've met a fitness instructor. We have people with their kids in the school district. We have, immigrants that are living outside. We have a whole array of people. These are all individuals.

263
00:38:02.660 --> 00:38:10.009
Boardroom: And I do — as to the previous speaker, these issues do have to be concerned. Everything has to be addressed.

264
00:38:10.190 --> 00:38:16.650
Boardroom: But we have to consider all the individual considerations rather than broad, sweeping bans. Thank you.

265
00:38:17.380 --> 00:38:22.750
Boardroom: Okay, we'll go to the speakers online. The 1st speaker is Della Luna.

266
00:38:24.710 --> 00:38:25.510
Boardroom: Where'd she go?

267
00:38:28.160 --> 00:38:39.980
Della Luna (she/her) Huichun: Yes, I wanted to speak about the roadways. I've spoken a couple times about the crosswalk at Ashby, at Mlk. At the Bart and you all. There's a sign.

268
00:38:40.020 --> 00:38:50.560
Della Luna (she/her) Huichun: that has, like, way too many… my whole point is that you're creating a lot of distractions for drivers, so there's a sign there, and it feels like there's a whole haiku written on the sign to…

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269
00:38:50.560 --> 00:39:00.260
Della Luna (she/her) Huichun: and explain this new type of crosswalk that suddenly exists that looks like a railroad crossing. The sign says, stop on the red or something, but then the lights flash yellow.

270
00:39:00.550 --> 00:39:06.909
Della Luna (she/her) Huichun: And then… so it's confusing for drivers. You're creating a lot of distraction for drivers in that particular area.

271
00:39:07.330 --> 00:39:10.460
Della Luna (she/her) Huichun: Additionally, like, the painting of the curbs red.

272
00:39:10.480 --> 00:39:17.069
Della Luna (she/her) Huichun: You're using the wrong color red. You're using fire engine red, and that's, like, alert for, like, fire trucks.

273
00:39:17.070 --> 00:39:32.510
Della Luna (she/her) Huichun: And when you paint the road, it's usually it's a typical more of a brick colored red, so it's less distracting to the drivers. And I think you've created a lot of painting and like putting things in the roadway, and it's just creating a lot of confusion, and pedestrians have a false sense of confidence.

274
00:39:32.510 --> 00:39:33.740
Boardroom: Thank you.

275
00:39:34.700 --> 00:39:37.480
Boardroom: Next is… David?

276
00:39:41.140 --> 00:39:47.939
David Hofmayer: Good evening, my name's David Hofmayer. I live in District 1, and my 3-year-old attends Duck's Nest Preschool in that district.

277
00:39:48.180 --> 00:39:58.650
David Hofmayer: As you may know, Councilmember Kesarwani has authored a resolution with co-sponsors, Councilmembers Taplin and Blackaby, to establish an encampment buffer zone around licensed preschools and daycares.

278
00:39:58.650 --> 00:40:08.370

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David Hofmayer: We understand there were legitimate reasons to defer that item to a special session on November 17th, but the delay makes it all the more important that the Council pass the resolution on the 17th.

279
00:40:08.730 --> 00:40:14.270
David Hofmayer: Young children are vulnerable in real time to the health and safety conditions that encampments bring.

280
00:40:14.370 --> 00:40:26.360
David Hofmayer: And West Berkeley has seen how quickly encampments can grow. I also note that a 4pm meeting is hard for parents of young children to attend, so please give full weight to the voices of the many parents who have spoken and written on this issue.

281
00:40:26.370 --> 00:40:40.489
David Hofmayer: Finally, to give the resolution practical effect, the City Manager will need to amend AR10.2 as directed by the resolution. I urge the City Manager to do that promptly once the Council acts, so the buffer can take real-world effect to protect children like mine. Thank you.

282
00:40:42.610 --> 00:40:43.580
Boardroom: Thank you.

283
00:40:43.760 --> 00:40:46.320
Boardroom: Next is Maria Sol.

284
00:40:48.160 --> 00:40:48.780
maria sol: Okay.

285
00:40:49.020 --> 00:41:00.200
maria sol: Oh, hello, everyone. Another Tuesday. So much to do and so few. Speaking of which, I'd like to ask us to really encourage more participation.

286
00:41:00.710 --> 00:41:05.010
maria sol: Generically, even though it adds to a lot of voices to listen to.

287
00:41:05.140 --> 00:41:16.830
maria sol: But we've got to come together and work things out, so we need more commissioners on our commissions. I'm also very concerned about the sudden closure of Bonita House.

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288
00:41:17.060 --> 00:41:23.710
maria sol: And it's really… Of great concern, and then also, please don't forget.

289
00:41:23.830 --> 00:41:40.540
maria sol: I know you don't, but please remember more the seniors, the ADA, the disabled people, and women when it comes to considering what is safe and secure and, amenable to the survival of everyone. Thank you very much.

290
00:41:41.000 --> 00:41:42.000
Boardroom: Thank you, Maria.

291
00:41:43.420 --> 00:41:48.960
Boardroom: Next is, caller with a phone number ending in 211.

292
00:41:54.750 --> 00:41:56.790
1510****211: Hi, this is Reid. Good evening.

293
00:41:57.000 --> 00:42:10.889
1510****211: I just like to bring 2 points very quickly. Number one. This area again, when he refused to do ceasefire in Gaza. a resolution while San Francisco, Richmond, Oakland, San Jose did it really brought this monstrous.

294
00:42:11.300 --> 00:42:14.810
1510****211: We haven't country, our country been destroyed.

295
00:42:15.450 --> 00:42:22.879
1510****211: Anyway, besides that, there's no reason in We have a new employee from Pacifica.

296
00:42:22.950 --> 00:42:36.930
1510****211: who took over the Berkeley housing place, put her foot in Jess Erigene's mouth, and to keep our business from starting six years ago, would have done over probably $5 million. Probably the city would have benefited a lot.

297
00:42:37.190 --> 00:42:46.009

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1510****211: Welcome everybody. Put your position ahead of body system which have taken over city of Berkeley for many years. Thank you. I'll call again.

298
00:42:48.740 --> 00:42:50.920
Boardroom: Next is Yesica Prado.

299
00:42:56.750 --> 00:42:58.019
Yesica Prado: Hello, can you hear me?

300
00:42:58.600 --> 00:42:59.220
Boardroom: Yes.

301
00:42:59.680 --> 00:43:20.980
Yesica Prado: Hi, I just wanted to address the buffer zone policy that is being planned out. I just want to bring the issue that, you know, this is another reactionary homeless policy that Rashi Kesarwani has drafted. We need real solutions that don't divide up our community. And right now, this policy is dividing the community between the students, the people that are unhoused, the neighbors.

302
00:43:20.980 --> 00:43:22.449
Yesica Prado: That's not the solution.

303
00:43:22.450 --> 00:43:41.249
Yesica Prado: And also, you're not considering that, yes, disabled people also have to be considered part of your policy. Otherwise, we're just gonna end up in court again, and I don't think that's what the city wants. So I am telling you now that please consider that this policy needs to have an accommodation, because we are going to request an accommodation to the policy, and then you will have to answer that.

304
00:43:41.390 --> 00:43:57.890
Yesica Prado: And right now, you're also limiting more spaces where people can camp. There's only 15% of the city where people can actually camp at this moment. With this policy, that's gonna limit the spaces even further, and the city's not providing any kind of alternative. You're just limiting the spaces where people can be.

305
00:43:57.960 --> 00:44:02.620
Yesica Prado: So at the moment, it looks like you guys are just passing a citywide camping ban when we…

306

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00:44:02.620 --> 00:44:04.399
Boardroom: Thank you. Thanks for your comment.

307
00:44:05.090 --> 00:44:07.500
Boardroom: Okay, that's the last, speaker.

308
00:44:09.690 --> 00:44:18.059
Boardroom: Sorry. Okay. All right. Moving on. We are going to the consent. Calendar Council members. Are there any comments on the consent? Calendar?

309
00:44:19.330 --> 00:44:22.390
Boardroom: Let's see if our parliamentarian works today.

310
00:44:23.850 --> 00:44:25.709
Boardroom: Oh, yes, thank you very much.

311
00:44:26.870 --> 00:44:35.600
Boardroom: First, we have an urgency item. Do you want to speak to it? Sure. Thank you. The

312
00:44:35.870 --> 00:44:45.900
Boardroom: Federal government, the Department of Commerce and the Census Bureau proposed changes, significant changes to the census, that would disproportionately affect.

313
00:44:46.070 --> 00:44:51.300
Boardroom: Berkeley residents and being accurately counted in the next census. So this is a…

314
00:44:51.520 --> 00:44:55.439
Boardroom: Letter, requested and drafted by staff to…

315
00:44:56.100 --> 00:44:59.490
Boardroom: Oppose these changes and ask.

316
00:45:00.050 --> 00:45:12.770
Boardroom: the federal government to allow for more time for comment. So I would like to add Councilmember Tragov as a co-sponsor, and also move that we accept this item to the consent calendar. Second.

317

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00:45:14.520 --> 00:45:22.560
Boardroom: Thank you very much. Okay. Calling the roll on adding the item to the agenda, Councilmember Kesarwani?

318
00:45:23.300 --> 00:45:24.070
Rashi Kesarwani: Yes.

319
00:45:25.130 --> 00:45:33.350
Boardroom: Taplin? Aye. Bartlett? Yes. Traga? Aye. O'Keefe? Yes. Blackaby? Yes. Luna Parra? Yes.

320
00:45:33.430 --> 00:45:47.720
Boardroom: Humbert? Yes. And Mary Ishii? Yes. Okay, motion carries. Items added to the agenda, just for the public, it's, it's also, there's copies of it on the back table, it's also posted on the, agenda,

321
00:45:48.210 --> 00:45:50.490
Boardroom: Online agenda for this meeting.

322
00:45:50.860 --> 00:45:52.270
Boardroom: It's available to the public.

323
00:45:53.500 --> 00:45:55.359
Boardroom: Thank you. Thank you very much.

324
00:45:55.470 --> 00:46:00.089
Boardroom: All right, very good. Any comments on the consent calendar?

325
00:46:02.170 --> 00:46:05.510
Boardroom: Nobody. Okay. Councilmember O'Keefe.

326
00:46:06.410 --> 00:46:08.159
Boardroom: Nobody wanted to be first.

327
00:46:08.820 --> 00:46:27.019
Boardroom: Yeah, I'm happy to comment, because I actually have two items on there. They're both, the same items, or doing the same thing. I am the, I don't know if you guys know this, because it doesn't come up very often, but I'm the Council Representative to the Board of Library Trustees, and so we have, two items, items 28 and 29.

328

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00:46:27.020 --> 00:46:40.939
Boardroom: which are appointing new members, so I just want to let you guys know we've been very busy over the last year. We hired a new director, Rebecca Alcala-Maraflor, and then immediately had to pivot to fill two vacancies on our board of five, so it was,

329
00:46:40.940 --> 00:46:55.500
Boardroom: It was a long process. We had over 20 people apply, which really makes me feel so good about how invested the community is in our library system, and we picked two really good people, Hongzhi and Court. I don't think… are either of you here?

330
00:46:55.640 --> 00:47:01.819
Boardroom: I don't think so, but we're happy with our choices and welcome them. And thank you very much.

331
00:47:02.440 --> 00:47:05.789
Boardroom: Thank you so much. Councilmember, councilmember Humbert.

332
00:47:06.390 --> 00:47:18.619
Boardroom: Thank you, Madam Mayor. I've just got a few comments. I want to highlight item number 5, which is the contract to provide some additional funding to Live Free USA.

333
00:47:18.790 --> 00:47:23.770
Boardroom: I'm really happy about this grant funding for this really important and effective organization.

334
00:47:25.230 --> 00:47:27.790
Boardroom: Let's see, find my next comment.

335
00:47:29.190 --> 00:47:31.750
Boardroom: Item number 14.

336
00:47:33.430 --> 00:47:45.510
Boardroom: which is authorizing the city manager to submit a local highway safety improvement program to improve some intersections along Shattuck University, Bancroft and Oxford.

337
00:47:45.510 --> 00:47:53.690
Boardroom: I'm excited about the potential for this grant application to help make these intersections safer for pedestrians.

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338
00:47:56.410 --> 00:48:05.079
Boardroom: Item number 21, to rename the park at the northern end of the Berkeley waterfront as Sisi Pueyde Park.

339
00:48:05.230 --> 00:48:18.820
Boardroom: I want to thank the Parks, Recreation, Waterfront Commission and the members of the Naming Committee for all their hard work and for building consensus on what I think is a fine and appropriate renaming of this park. Si, se puede.

340
00:48:21.690 --> 00:48:23.670
Boardroom: And I think I have…

341
00:48:25.240 --> 00:48:43.899
Boardroom: One more, number 26, which is Councilmember Bartlett's item for the Berkeley Flea Market End of the Season Fall Festival Halloween Celebration event. I'd like to, contribute $200 from my office account. And item number 27, which is also, Councilmember Bartlett item.

342
00:48:43.900 --> 00:48:54.329
Boardroom: The Harriet Tubman Terrace Residence Low Income Housing Bay Cruise lunch event, that sounds like fun, like to contribute $200 to that. Thank you.

343
00:48:56.900 --> 00:49:13.080
Boardroom: Thank you very much. Moving on to Councilmember Luna Parra. Thank you. I want to thank the Disability Commission and city staff for their work on Pro Wag. I'm excited that this is moving forward and that staff

344
00:49:13.080 --> 00:49:17.289
Boardroom: Are going to work on this to make sure that our disabled community have,

345
00:49:17.860 --> 00:49:21.770
Boardroom: Equitable street realm that they can move around,

346
00:49:22.370 --> 00:49:36.260
Boardroom: I want to thank the Latina community in Berkeley for all of their work and to rename the northern end of the Berkeley waterfront. I'm excited for this and really thankful for everyone's work.

347

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00:49:36.530 --> 00:49:40.229
Boardroom: coming together after such a difficult moment for us.

348
00:49:40.850 --> 00:49:44.180
Boardroom: And then I would like to,

349
00:49:44.510 --> 00:49:53.309
Boardroom: allocate $150 from my discretionary fund to items 26 and 27 from Councilmember Bartlett, and thank him for the for authoring.

350
00:49:53.500 --> 00:49:54.300
Boardroom: Thanks.

351
00:49:55.400 --> 00:49:58.960
Boardroom: Thank you so much. The parliamentarian is like

352
00:49:59.170 --> 00:50:04.440
Boardroom: Totally on the fritz right now, so I know Councilmember Bakkeby's on here, but,

353
00:50:04.890 --> 00:50:09.980
Boardroom: I don't know if it will continue to work, so go ahead. All right. Thank you. Thanks, Madam Mayor.

354
00:50:10.070 --> 00:50:22.620
Boardroom: I wanted to thank the auditor for her information report on the city leases audit, and just wanted to remark that how important it is that we

355
00:50:22.620 --> 00:50:35.669
Boardroom: do track these leases, and looking forward to having the software system come online in the next 3 months. We do have 66, at least at last count from the presentation, different leases that the city administers across a lot of different departments.

356
00:50:35.790 --> 00:50:55.169
Boardroom: And just having more visibility and kind of centralized management of all that, I think, will make all of us more comfortable to make sure that, as again, we're looking to maximize revenues moving forward, that we're getting the most out of the leases and making sure that we're following up on leases that are expired or that need to be renewed. So, I just want to thank the auditor for bringing it and looking forward to

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357
00:50:55.170 --> 00:51:02.320
Boardroom: next year's look back, and hopefully we'll be in a much better position with the software in place to help us manage the leases.

358
00:51:02.410 --> 00:51:14.400
Boardroom: As Councilmember Luna Par mentioned on item 2820 B. Just want to thank again the Commission on Disability for all their work on this important on the proag guidelines.

359
00:51:14.400 --> 00:51:20.720
Boardroom: And appreciate staffs working with the Commission and incorporating a lot of that work in what they're doing going forward.

360
00:51:20.720 --> 00:51:44.529
Boardroom: On item 21, share again, the thoughts of colleagues that, really happy with the, the new name of our Berkeley Waterfront Park. I want to thank the renaming commission. I want to thank the Parks Recreational Waterfront Commission for all of that, finding a name that honors the history of the farm worker movement in California and honors the farm workers who grow and harvest our food, so si se puede.

361
00:51:45.380 --> 00:51:56.569
Boardroom: and then on items 26 and 27. Similarly, would like to contribute $200 from our office account towards those 2 items. Thank you.

362
00:51:57.700 --> 00:51:58.939
Boardroom: Thank you.

363
00:51:59.100 --> 00:52:00.470
Boardroom: Councilmember Traco.

364
00:52:01.160 --> 00:52:15.460
Boardroom: Thank you, Madam Mayor. We have an agenda tonight that is rich with impactful items, and I want to express my deep gratitude to everyone who worked on them, starting with our incredible staff, leadership team, and all of our community stakeholders.

365
00:52:15.860 --> 00:52:26.250
Boardroom: I am thrilled about item 14, authorizing the city manager to submit a local highway safety improvement program cycle 13 grant application.

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366
00:52:26.400 --> 00:52:42.619
Boardroom: to improve safety at 30 signalized intersections along Shattuck, University, Bancroft, and Oxford. Of course, many, but not all, are in my district, and a number of constituents,

367
00:52:42.690 --> 00:52:59.149
Boardroom: have commented to us about the need to improve everything from traffic signal timing to other improvements needed at those critical, very active and lively locations. So, thank you for bringing this item forward. I,

368
00:52:59.430 --> 00:53:07.589
Boardroom: As has been mentioned by my colleagues, I wanted to just echo my gratitude to, and I see,

369
00:53:07.590 --> 00:53:23.079
Boardroom: Chair Fischer here, members of the Commission on Disability for their incredible work on PROWAG. Accessibility should be a fundamental consideration in how we design, maintain, and construct our public spaces.

370
00:53:23.080 --> 00:53:27.589
Boardroom: For people with disabilities, older adults, and residents with mobility challenges.

371
00:53:27.590 --> 00:53:43.000
Boardroom: An inaccessible sidewalk or construction zone can mean losing access to essential destinations. So I look forward to seeing clear expectations incorporated into city contracts with continued input from that commission, and other stakeholders.

372
00:53:43.000 --> 00:53:51.310
Boardroom: And I know we are on our way there. On item 21, I'll just echo the comments of my colleagues, CCFW.

373
00:53:51.440 --> 00:53:55.880
Boardroom: on items 23.

374
00:53:55.930 --> 00:54:11.269
Boardroom: and 24. I would like to thank the 0 Waste Commission staff and all who have weighed in. This is and I really want to thank my Commissioner.

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375
00:54:11.270 --> 00:54:20.520
Boardroom: Commissioner Monrad, who has updated my office and me personally for the past year on this work.

376
00:54:22.660 --> 00:54:28.800
Boardroom: In regard to, allocating, the ability for,

377
00:54:28.890 --> 00:54:47.730
Boardroom: compliance with, green codes in new construction. This actually came out of a discussion that, I remember the Zoning Adjustments Board was having back when I was on it, and, here we are three years later with an ordinance in place, so thank you, so much.

378
00:54:47.730 --> 00:54:50.559
Boardroom: And thank you to our staff for implementing that.

379
00:54:50.560 --> 00:55:04.800
Boardroom: Lastly, I would like to contribute a hundred dollars each from my G 13 account for items 26 and 27, and would like to thank Council Member Luna Parra for her urgency item.

380
00:55:06.530 --> 00:55:25.370
Boardroom: Thank you very much. I also wanted to comment on item 21, and just thank very much the Latinos Unidos Renaming Committee for all of the work that they did to solicit community feedback on the new name for the park. I know some folks have some concerns, and I know that also our city staff will be having conversation

381
00:55:25.370 --> 00:55:37.969
Boardroom: conversations with the UFW about the use of Si Se Puede, which apparently is trademarked. Very shocking to me. And anyway, so we will get updates if there's any issues that will come back to us for a conversation.

382
00:55:37.970 --> 00:55:52.859
Boardroom: And I do just want to thank folks again. I know that this was a really devastating reason to have to rename our park, and so I'm grateful to everyone who came together and found a positive way to move forward and still honor the work of the movement.

383
00:55:53.130 --> 00:56:01.050
Boardroom: I also wanted to briefly comment on the Westlaw item, which I think is item number…

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384
00:56:01.700 --> 00:56:04.339
Boardroom: I'm not sure which item number it is.

385
00:56:04.490 --> 00:56:16.050
Boardroom: Oh, number 2, which is a it says, a waiver of sanctuary city ordinance for Westlaw contract. Just in case anyone had any concerns about that. Westlaw is a program that

386
00:56:16.050 --> 00:56:29.720
Boardroom: Basically all law firms use as, to get legal information, to look up old cases and the laws, and it is, a company that is also used by, an immigration enforcement.

387
00:56:30.110 --> 00:56:49.299
Boardroom: agency, and so, just so folks kind of understand why it's being waived, it's just that that is the reason, so I just wanted to highlight that for folks in case they had any concerns. And I'd also like to give $100 from my office budget to items 26, and also $100 to items 20… item 27.

388
00:56:49.450 --> 00:57:06.920
Boardroom: And oh, and thank you so much to staff, and also our our our our disability commission for their work on proag together. So thank you all very much for that. Okay, are there any?

389
00:57:06.980 --> 00:57:10.109
Boardroom: Sorry. Oh, yes, thank you. Councilmember Kesarwani.

390
00:57:10.110 --> 00:57:21.039
Rashi Kesarwani: Thank you very much, Madam Mayor. I want to echo the comments of others for item number 21. I just want to thank all of the.

391
00:57:21.140 --> 00:57:34.850
Rashi Kesarwani: groups and individuals who were involved, specifically Latinos Unidos and the Parks Commission for their work. It's really, gratifying that we can come together to rename this park Si Se Pueve Park.

392
00:57:34.900 --> 00:57:46.999
Rashi Kesarwani: Item number 25 is my item to require a procurement process when the city is seeking to acquire services. This is in response to

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393
00:57:47.000 --> 00:58:00.459
Rashi Kesarwani: a very important audit that was released by our city auditor's office earlier this year, and I do just want to clarify because we received a letter from the Ecology Center about this item.

394
00:58:00.540 --> 00:58:16.480
Rashi Kesarwani: When we do procurement for professional services, when you look at the ordinance language here, it says that the contract award shall be based on, quote, demonstrated competence and qualifications.

395
00:58:16.610 --> 00:58:30.859
Rashi Kesarwani: for the types of services to be performed at fair and reasonable prices. So it's not just the lowest price we will, and it's very important to consider competence and qualifications. So I just want to make that clear that

396
00:58:30.860 --> 00:58:47.350
Rashi Kesarwani: we're going to have a transparent process to find the most qualified service provider at the best price. And I think this is a very important reform to make sure that we are using public dollars as effectively and efficiently as possible.

397
00:58:47.350 --> 00:58:53.630
Rashi Kesarwani: and and that everyone has an equal opportunity to compete to win those contracts.

398
00:58:54.040 --> 00:59:09.710
Rashi Kesarwani: And then, finally, I would also like to be recorded as donating $100 to item number 26 for the Berkeley Flea Market event and item number 27 for Harriet Tubman Terrace. Thank you very much.

399
00:59:10.300 --> 00:59:17.899
Boardroom: Thank you very much. I think that, Council… well, actually, you haven't gone yet, so I'm gonna let Councilmember Bartlett go, and then Councilmember O'Keefe wants to add on.

400
00:59:18.810 --> 00:59:38.810
Boardroom: Thank you, Madam Mayor, and I want to thank everyone for donating to the two events, the Flea Market and the Harriet Tubman Center. They were really awesome events. We feel thankful. And, and regarding 25, this is the, what Councilor Kaswaran just, just spoke to, the competitive procurement process. So, I think this one's very important because,

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401
00:59:38.890 --> 00:59:49.950
Boardroom: 10 years ago, we passed a measure to increase, I guess, diversity among contractors in the city. They call it the BINDEX, the Berkeley Inclusion Diversity Index.

402
00:59:49.970 --> 01:00:01.559
Boardroom: I didn't name it Bendex. They called it Bendex. And so, you know, and in this time, you know, Councilman Senior Manager will tell you, we've worked hard to implement it. We have, we have new structures within the.

403
01:00:01.560 --> 01:00:18.850
Boardroom: process, the department said no about it, however, this will help jumpstart that process, it'll help fulfill it, so that we can, you know, take a second before we rubber stamp, these other roles. We give out contracts all the time, engineering, technology, cleaning, things like that, to let someone else get a shot

404
01:00:18.850 --> 01:00:23.090
Boardroom: at achieving their dreams. So it's a very important measure. Thank you.

405
01:00:23.730 --> 01:00:40.069
Boardroom: Thank you. Alright, Councilmember O'Keefe, did you have something you wanted to add? Yeah, thank you. I was so excited about my library item, I forgot to do the other things. I'd like to be recorded as donating $150 to items, 26 and 27 each, and I'm a huge Dr. Allen fan, so I don't know if you're here, but…

406
01:00:40.320 --> 01:00:42.680
Boardroom: So that's all. Thanks so much.

407
01:00:43.080 --> 01:00:47.569
Boardroom: Thank you. Okay. Oh, did you press yours? Oh.

408
01:00:48.680 --> 01:00:57.550
Boardroom: Sorry, Councilmember Taplin actually just — OK. Hi, thank you. I would like to be recorded as relinquishing $100 to items 26 and 27 each. Thank you.

409
01:00:58.330 --> 01:01:04.510

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Boardroom: thank you what were you saying Mr City Clerk just for the for items 20

410
01:01:04.890 --> 01:01:19.809
Boardroom: 23 and 24… Just for the record that, we'd be adopting 20… B, 20… 3B and 24B?

411
01:01:20.040 --> 01:01:26.589
Boardroom: Those are the items to… If that's the will of the council to… because we have to pick one.

412
01:01:27.020 --> 01:01:29.020
Boardroom: To adopt.

413
01:01:29.570 --> 01:01:48.380
Boardroom: Thank you. As part of the motion. Right, so whoever makes the motion would need to specify… And that 22A is being referred. That's right, thank you. We still have to take public comment, so we'll take that first, and then we'll come back to this. Alright, very good. So, is there any public comment on consent calendar or information items only?

414
01:02:06.820 --> 01:02:08.920
Boardroom: Welcome! Hello.

415
01:02:10.520 --> 01:02:11.290
Boardroom: We have a minute.

416
01:02:11.750 --> 01:02:13.819
Boardroom: Oh, we thought we had 2 min. Is it one?

417
01:02:14.490 --> 01:02:33.889
Boardroom: You can… if only… Yeah, yeah, I was gonna say, if you're… if you're combining your comment, you can do two… I don't know who's planning on speaking. They'll speak very standing and… very fast. Okay. Okay. Because they… you can give your minutes to her if you need more time, is my point. Oh, yeah, we… I think we did time it as two minutes, so maybe…

418
01:02:33.960 --> 01:02:35.040
Boardroom: Give us a minute.

419
01:02:35.700 --> 01:02:38.349

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Boardroom: Okay. We'll do our best. Okay. Okay.

420
01:02:38.350 --> 01:03:03.319
Boardroom: Good evening, Mayor, Ishi and council members. My name is Natasha Biri, and thank you for your support for item 21 on the consent calendar to rename the the northern end of the waterfront park with the inspiring and uplifting name Sisay Pueve. As you know, following the April referral from the mayor and city council, we formed a citywide committee composed of representatives from multiple constituencies.

421
01:03:03.320 --> 01:03:27.389
Boardroom: including representatives, many of them here, from Latinos Unidos, La Colectiva Latina, the Parks Tribute Site, the Multicultural Institute, the Ecology Center, as well as park user groups and educational and civic representatives. We conducted a deliberative process that was based on the successful model used by the Berkeley Unified School District, one with which I'm very familiar.

422
01:03:27.390 --> 01:03:47.130
Boardroom: in my former role as Director of Community Relations for BUSD. We met multiple times and then provided a rationale to the PRW Commission. They voted unanimously last month to support our consensus recommendation to the… Sorry, Denise, you can give them, one minute from… I think they're sharing their minutes here. We're sharing. Yeah, yeah. Okay, good.

423
01:03:47.130 --> 01:03:49.280
Boardroom: And we thank you for your support.

424
01:03:49.330 --> 01:03:57.490
Boardroom: for the meaningful, uplifting, and enduring new name, Si Se Puede Park. There, I only used 15 extra seconds. And now, Beatriz.

425
01:03:57.900 --> 01:03:58.810
Boardroom: Yes.

426
01:03:58.810 --> 01:04:23.720
Boardroom: My name is Beatriz Leyva Cutler, a member of the committee, renaming committee, and the school board director. The phrase si se puede has been adopted not only by farm workers in the labor movement, but by many individuals and groups working towards positive social change. We are proud of our process and the wide support for the consensus of the name si se puede. Roger Miller, the PRW senior management analyst, has already spoken to UFW representative

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427
01:04:23.720 --> 01:04:30.039
Boardroom: and they are open to Berkeley being the first municipality to obtain an approved use of the phrase si se puede.

428
01:04:30.080 --> 01:04:53.509
Boardroom: The application is in process, and we are pleased that the UFW has given the provisional approval for our city to use Si Se Puede. The park's renaming is only part of our efforts, as we include the reconceptualization of the tribute site, the solar observatory at the park, and educating visitors about the farmworker movement, as we have had for the past 20-plus years, and we plan to promote the citywide farmworker commemorative period

429
01:04:53.510 --> 01:05:05.300
Boardroom: with BUSD classrooms at the tribute sites, calendar site at BCC and UC Berkeley and across the community of Berkeley during the spring of 2027, with the new park's name providing inspiration to everyone.

430
01:05:05.300 --> 01:05:20.429
Boardroom: Thank you for your support for the name Si Se Puede Park. It captures the heart and hope of the farmworker movement, as well as movements across the world, and an essential spirit of Berkeley that Si Se Puede, yes, we can. We can work towards a better future for all. Gracias.

431
01:05:21.180 --> 01:05:22.839
Boardroom: Thank you, thank you all.

432
01:05:34.200 --> 01:05:49.349
Boardroom: Hi, I'm Philip Monrad, Councilmember Treglub's appointee to the Zero Waste Commission, and I'd like to, on behalf of the Commission, I'd like to speak in support of items 22 through 24 of the Consent Agenda. But as a

433
01:05:49.350 --> 01:06:03.799
Boardroom: point of procedure that I hope doesn't count against my time. I believe I heard a comment from the city manager about pulling this, in which case, I would like to speak to the issue of pulling it, as opposed to support, just simply supporting it.

434
01:06:04.920 --> 01:06:07.029
Boardroom: Yeah, you may, you may speak to

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435
01:06:07.280 --> 01:06:23.100
Boardroom: Pulling it, if you want. OK. These proposals were adopted after much study and multiple drafts by uniform unanimous vote of the Zero Waste Commission in October 2025.

436
01:06:23.100 --> 01:06:34.079
Boardroom: And the report, the city manager's complementary report to the commission's report unequivocally supported it.

437
01:06:34.080 --> 01:06:40.979
Boardroom: So if it has to be delayed, I hope that — Sorry, can someone give him a minute?

438
01:06:40.980 --> 01:06:44.819
Boardroom: I would like to hear the rest of his state. Thank you. Okay, go ahead.

439
01:06:44.960 --> 01:07:02.840
Boardroom: I would urge that the Commission be consulted as to what are the nature of the additional issues that need to be addressed, and I'm very hopeful and confident that they will be in align with the spirit of the referrals. Thank you.

440
01:07:03.160 --> 01:07:05.419
Boardroom: Thank you so much, appreciate it.

441
01:07:10.590 --> 01:07:17.239
Boardroom: Hi. Thank you, Mayor and Council Members. My name is Sandra Curtis. I'm a longtime Berkeley resident.

442
01:07:17.340 --> 01:07:18.070
Boardroom: Okay.

443
01:07:18.110 --> 01:07:21.679
Boardroom: I'm the Zero Waste Commissioner for Brent.

444
01:07:21.710 --> 01:07:36.949
Boardroom: I… I know you… that's… you're gonna decide about the, 22 to 24, but I would just like to reinforce that the current regulation, as you're considering this, the current regulations regarding planning, conducting, and…

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445
01:07:36.950 --> 01:07:43.910
Boardroom: Cleaning up after special events do not adequately advance the city's zero waste goals, nor do such.

446
01:07:44.030 --> 01:07:58.000
Boardroom: Regulations have an enforcement component that guides special events, event planners, and their vendors towards constructive recycling, composting, and waste reduction behavior.

447
01:07:58.350 --> 01:08:15.439
Boardroom: Item 22 strengthens the regulations and will help special events to model the environmental stewardship that we want to do here in the city. So, thank you for thinking about that as you're considering this. Alright. Thank you very much, thanks.

448
01:08:17.810 --> 01:08:23.670
Boardroom: Good evening. Jack Macy's Berkeley resident. I yield my time to Steve Sherman, Zero Waste Chair.

449
01:08:24.819 --> 01:08:32.980
Boardroom: Thank you. Good evening, Stephen Chairman, Chair of the Zero Waste Commission. The Commission has proposed several items regarding enforcement mechanisms.

450
01:08:33.189 --> 01:08:52.819
Boardroom: For recycling, composting, and waste reduction at special events and within building codes, please support items 22, whether currently or as may get revised, through 24. Item 25 dovetails with an advisory position that the Commission will be presenting soon in a written report to Council.

451
01:08:52.970 --> 01:08:57.680
Boardroom: The recommendation will be for Council to direct the Zero Waste Commission to recommend to staff.

452
01:08:57.689 --> 01:09:15.240
Boardroom: and Council qualification and evaluation criteria within procurement documents for certain major zero-waste services, such as composting processing and recycling collection and processing, for consistency with the City's zero-waste goals, services, and policies.

453
01:09:15.399 --> 01:09:30.830

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Boardroom: The Commission should be enabled by the Council to engage upfront in the two most fundamental aspects of public management and oversight of the solid waste management system, namely procurement of major service providers and proposed adjustments to the rate structure.

454
01:09:30.890 --> 01:09:46.609
Boardroom: That way, we can help the $60 million per year solid waste enterprise to have greater financial accountability and transparency to Berkeley residents and local businesses, all of whom are ratepayers. And then we can be, then we can be able to help safeguard Berkeley's excellent

455
01:09:46.609 --> 01:09:53.399
Boardroom: recycling and composting programs with attention to Berkeley's values, such as local economic development, local control.

456
01:09:53.399 --> 01:10:05.400
Boardroom: social justice and high environmental standards on the specifics of 25 directly. Please consider with respect to the recycling contracts. Please consider that the industry standard for contract length

457
01:10:05.510 --> 01:10:12.750
Boardroom: It is substantially longer than 5 to 7 years, To allow for… cost controls.

458
01:10:12.880 --> 01:10:21.889
Boardroom: and proper amortization schedules for collection vehicles and processing equipment. Thank you for your support for Zero Waste Commission referrals.

459
01:10:23.450 --> 01:10:24.700
Boardroom: Thank you so much.

460
01:10:27.360 --> 01:10:35.099
Boardroom: Carol Morozovic, I would like to stand in support of the work of Live Free, funded in, Item 5.

461
01:10:35.100 --> 01:10:49.040
Boardroom: the Harriet Tubman residence in IM27, and the requirement for competitive procurement, contracts, which is deeply needed, and I cede the rest of my time to Rena Fisher.

462
01:10:49.510 --> 01:10:50.660

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Boardroom: Thank you.

463
01:11:03.480 --> 01:11:07.650
Boardroom: Rena, would you like the handheld mic? Sure.

464
01:11:09.510 --> 01:11:11.520
Boardroom: Can't get under that table.

465
01:11:14.360 --> 01:11:16.020
Boardroom: That's so.

466
01:11:17.570 --> 01:11:23.099
Boardroom: So, she has her own minute on top of those 39 seconds, please.

467
01:11:23.600 --> 01:11:24.730
Boardroom: Thank you.

468
01:11:28.240 --> 01:11:45.089
Boardroom: So if there's another minute that was seated. Yes, is there another minute for you that you have? Okay, sorry. So it's 2 min. Thank you. Thanks. So, honorable mayor and council members. I'm Rena Fisher, chairperson of the Commission on Disability.

469
01:11:45.540 --> 01:11:50.049
Boardroom: Once Public Works moved item 20 forward.

470
01:11:50.220 --> 01:12:07.959
Boardroom: the Public Right-of-Way Accessibility Guidelines, PROWAG. It moved quickly and collaboratively with the Commission on Disability. We had substantive input on the construction zone guidelines, which now explicitly incorporate PROWAG into the document.

471
01:12:08.720 --> 01:12:23.779
Boardroom: And there is good reason. PROWAG is considered best practice by all who have weighed in, including, most importantly, by every court that has ruled on the subject of accessibility in the past several years.

472
01:12:24.340 --> 01:12:27.299
Boardroom: A few important challenges remain.

473
01:12:27.450 --> 01:12:30.130

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Boardroom: First, reporting and enforcement.

474
01:12:30.510 --> 01:12:41.500
Boardroom: The city's approach continues to rely almost entirely on community members to identify and report violations during construction.

475
01:12:41.980 --> 01:12:46.410
Boardroom: Reporting when we encounter dangerous and inaccessible routes.

476
01:12:46.810 --> 01:12:53.149
Boardroom: The city needs proactive inspection, not complaint-driven enforcement.

477
01:12:54.200 --> 01:13:05.430
Boardroom: The good… the new guidelines should also incorporate clear enforcement mechanisms, including the specifics for holding non-compliant contractors accountable.

478
01:13:06.220 --> 01:13:10.919
Boardroom: The most important remaining challenge is contract language.

479
01:13:11.040 --> 01:13:15.460
Boardroom: This is where the entire process began in 2025.

480
01:13:15.640 --> 01:13:31.679
Boardroom: The Commission on Disability's principal recommendation was straightforward. Incorporate boilerplate PROWAG language into city contracts affecting the public right of way, making PROWAG enforceable contractual obligations.

481
01:13:31.950 --> 01:13:47.510
Boardroom: The city has now accepted this recommendation in principle. That's important progress, but taking another six to eight months to write boilerplate language seems unacceptable.

482
01:13:47.600 --> 01:14:03.399
Boardroom: The timeline is unnecessarily long, and in the meantime, there will be more and more public works contracts, significantly thanks to Measure FF funding. These contracts will govern construction for many, many months.

483
01:14:03.530 --> 01:14:07.129

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Boardroom: Perpetuating the problem everyone seeks to correct.

484
01:14:07.310 --> 01:14:20.160
Boardroom: Including pro-life and contracts must be prioritized. Six to eight months to write boilerplate language and models already exist is just unnecessary.

485
01:14:20.370 --> 01:14:26.610
Boardroom: We appreciate the progress made and collaboration undertaken. Thank you. Thank you.

486
01:14:34.860 --> 01:14:35.570
Boardroom: Okay.

487
01:14:50.780 --> 01:15:07.649
Boardroom: Hello, Dr. Monique Allen, excuse me, with Community Services United Berkeley Flea Market. Prestigious council members, Madam Mayor Ishii and City Manager Budenhagen, thank you so much for your generous contribution to CSU Berkeley Flea Market for support on item number 26.

488
01:15:07.650 --> 01:15:15.919
Boardroom: The first D13 helped us with our successful grand reopening this past June, and now this D13 will help us with our final on-site celebrate.

489
01:15:15.940 --> 01:15:19.399
Boardroom: Excuse me, celebrations before the rainy season is upon us.

490
01:15:19.400 --> 01:15:40.270
Boardroom: We thank you for all showing up individually to support the market, our entertainers, as well as our vendors. We have procured many community partners and are planning to have a fabulous 2027 outdoor events for South and West Berkeley marginalized communities to enjoy and benefit from. Thank you all again for your continued dedication and commitment to community.

491
01:15:41.460 --> 01:15:42.480
Boardroom: Thank you.

492
01:15:46.530 --> 01:16:05.019
Boardroom: Madam Mayor, City Council Members, I'm Martin Bork, Executive Director at the Ecology Center. We support items 21 through 24, including

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the events item, and hope, these are necessary but, insufficient items to meet this… the goals of the City's 2025 Zero Waste Strategic Plan.

493
01:16:06.350 --> 01:16:11.440
Boardroom: We also support items 16 and 21 that remind us why we have

494
01:16:11.590 --> 01:16:13.889
Boardroom: Such ambitious zero waste goals.

495
01:16:14.360 --> 01:16:27.500
Boardroom: Over the last 50 years, the Ecology Center has provided leadership, vision, exceptional service, transparency, and value in helping the city meet zero waste, climate, health, and other environmental and social justice goals.

496
01:16:27.700 --> 01:16:39.500
Boardroom: We appreciate the intent of Item 25, and have offered additional safeguards and flexibility recommendations to improve procurement practices. We hope you will consider

497
01:16:39.600 --> 01:16:42.909
Boardroom: These in the implementation of the item.

498
01:16:43.240 --> 01:16:48.609
Boardroom: We're grateful for the opportunity to serve our community and look forward to working with you in the future. Thank you.

499
01:16:48.910 --> 01:16:50.149
Boardroom: Thank you, Martin.

500
01:17:00.120 --> 01:17:01.620
Boardroom: I have an extra minute.

501
01:17:05.910 --> 01:17:10.199
Boardroom: So, in item number… I guess it's 2?

502
01:17:10.570 --> 01:17:17.829
Boardroom: The West, the waiver, That's really, to me, and I could imagine…

503
01:17:18.750 --> 01:17:22.290

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Boardroom: To a lot of people that might not know this is on the agenda.

504
01:17:23.310 --> 01:17:29.150
Boardroom: A pretty scary thing, and I'm wondering, like, why you can't use a different…

505
01:17:29.320 --> 01:17:32.879
Boardroom: organization that doesn't contract with ICE,

506
01:17:33.360 --> 01:17:37.179
Boardroom: And bad players, especially in this climate.

507
01:17:37.450 --> 01:17:44.420
Boardroom: Of, 47… And all that's going on with ICE.

508
01:17:44.870 --> 01:17:49.870
Boardroom: And all these other Homeland Security…

509
01:17:50.900 --> 01:17:53.119
Boardroom: It's not a good thing, and…

510
01:17:54.420 --> 01:17:59.420
Boardroom: I just don't understand, like, how you could do that, and why you would do that.

511
01:18:00.220 --> 01:18:03.589
Boardroom: Especially right now, during this time.

512
01:18:04.570 --> 01:18:09.160
Boardroom: And, yeah, it's just crazy.

513
01:18:09.810 --> 01:18:13.280
Boardroom: And all the things that you all do.

514
01:18:13.710 --> 01:18:17.169
Boardroom: You would think that this wouldn't be one of them, especially now.

515
01:18:17.890 --> 01:18:18.710
Boardroom: And.

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516
01:18:20.290 --> 01:18:24.430
Boardroom: I wasn't here for public comment on non-agenda items.

517
01:18:24.830 --> 01:18:31.349
Boardroom: But… It's really clear to me that the city doesn't.

518
01:18:31.900 --> 01:18:37.220
Boardroom: It's kind of hypocritical because you didn't want to do flock because they cooperate with ICE.

519
01:18:37.770 --> 01:18:42.680
Boardroom: Yet, this… It's gonna happen, and it's on the consent calendar.

520
01:18:43.300 --> 01:18:45.910
Boardroom: What sense does that make?

521
01:18:46.800 --> 01:18:52.620
Boardroom: Because they can always… utilize… there…

522
01:18:54.150 --> 01:18:58.529
Boardroom: You know, capabilities to do the wrong thing.

523
01:18:58.890 --> 01:19:02.909
Boardroom: And I don't understand why you would put people in jeopardy like that.

524
01:19:03.250 --> 01:19:09.510
Boardroom: It's really sad to me that you would do that and, free Palestine.

525
01:19:11.550 --> 01:19:16.950
Boardroom: You missed it, Cheryl. I actually addressed that earlier. I didn't miss it. I heard you. I was on the phone. OK.

526
01:19:17.420 --> 01:19:18.210
Boardroom: Okay.

527
01:19:20.140 --> 01:19:22.140

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Boardroom: Don't assume things, you know what happened.

528
01:19:25.960 --> 01:19:34.519
Boardroom: Good evening, council members, Mayor Ishii. My name is Rebecca Alcala Veraflor. I am the new library director at the Berkeley Public Library.

529
01:19:34.670 --> 01:19:39.299
Boardroom: Thank you for that. I'm here just to thank you, thank.

530
01:19:39.570 --> 01:19:44.289
Boardroom: Councilmember O'kee for bringing forward the appointment of 2 new

531
01:19:44.460 --> 01:20:03.809
Boardroom: board members of our Board of Library Trustees, Court Jackson and Hongzhi Yu, who I know will be a tremendous addition to the board, and I look forward to working with them, and I appreciate your support and the community members' support of the Berkeley Public Library. Thank you.

532
01:20:04.260 --> 01:20:05.979
Boardroom: Thank you, good to see you here.

533
01:20:07.010 --> 01:20:10.999
Boardroom: Anyone online for consent calendar information items only.

534
01:20:13.140 --> 01:20:21.180
Boardroom: Yes. Three hands currently raised. We have, nope, poor.

535
01:20:21.330 --> 01:20:28.180
Boardroom: First is the caller or the number ending in 211.

536
01:20:32.670 --> 01:20:33.330
1510****211: Hi.

537
01:20:33.580 --> 01:20:49.629
1510****211: Hi. Berkeley Marina is one of the beauty and the pride of Berkeley. It's a beautiful, beautiful, beautiful place. We should all do it. It also brings very, very important memory in my mind. In 1968, while I was a grad student finishing my PhD in nuclear engineering at Cal.

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538
01:20:50.490 --> 01:21:04.379
1510****211: Mossad, Israeli Mossad, almost killed me. He tried to kidnap me from my house in Garber Street and killed me, and I survived, as he killed the beautiful lady Samira Musa, the Egyptian mother of nuclear physics. Please go, everybody, and

539
01:21:04.460 --> 01:21:13.619
1510****211: Lawrence Museum Hall of Science. Google search Samira Musa tribute from Lawrence Museum.

540
01:21:13.960 --> 01:21:15.749
1510****211: Thank you, and I will call again.

541
01:21:18.150 --> 01:21:18.920
Boardroom: Thank you.

542
01:21:20.330 --> 01:21:27.340
Boardroom: Next is, username, called Valued Customer.

543
01:21:29.720 --> 01:21:46.399
Valued Customer: Yeah, that's me. My name is Martin Nicholas. I'm the CEO of the Chavez Park Conservancy. I'm speaking on item 21. I love the political slogan, Si se puede. I've chanted it hundreds of times back in the day.

544
01:21:46.480 --> 01:21:57.559
Valued Customer: But it's not in the public domain. It's a trademark that's federally registered by the United Farm Workers Union, and for the city to use that, it needs the consent

545
01:21:57.560 --> 01:22:06.510
Valued Customer: of the Farm Workers Union. We've been told that the city has a preliminary consent, which means it does not have written consent.

546
01:22:06.510 --> 01:22:16.349
Valued Customer: I have corresponded with the attorneys for the Farm Workers Union, and I've been told as late as yesterday that there is no agreement

547
01:22:16.350 --> 01:22:32.770
Valued Customer: at this time with the City of Berkeley for the use of the mark. It's similar to the use of the name Dolores Huerta, which we

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wanted to use a long time ago, but then we found out that Dolores Huerta doesn't give consent for the use of that name.

548
01:22:32.940 --> 01:22:37.680
Valued Customer: At this time, the Farm Workers Union has not given consent for the use of that name.

549
01:22:37.680 --> 01:22:46.609
Boardroom: But thank you for your comment, and I commented earlier that the way that this procedure works, or the process works, is that

550
01:22:46.610 --> 01:23:02.970
Boardroom: the City Council would say, you know, we're interested in having it be that name, and then we will have conversations with UFW to make sure that that's okay, and then if it's not okay, we'll come back and have a conversation about it, and if it is okay, then we'll be able to move forward. So just so you know what the process looks like. Thanks, Marty.

551
01:23:03.460 --> 01:23:05.620
Boardroom: Next is Kelly Hammargren.

552
01:23:09.010 --> 01:23:24.860
kelly hammargren: On item 2, the waiver of the Sanctuary City. Do you mean to tell me that in the entire Bay Area, there is no other law firm that can provide services to the City of Berkeley? It seems like we shouldn't have to.

553
01:23:24.860 --> 01:23:36.140
kelly hammargren: forego our sanctuary city status to contract with Westlaw that also serves ICE. And I did hear your comments earlier. On 20, ProWAG.

554
01:23:36.560 --> 01:23:53.799
kelly hammargren: This has been going on since May 2025, and to think that it may take another 8 months to finish this, the city should be embarrassed. And number 25, I think this is really an excellent item.

555
01:23:54.180 --> 01:24:13.580
kelly hammargren: from Kesarwani, and I think that the legal department should have the same conditions as every other department in the city, and I did hear the discussions at the meeting, but I still believe that the legal department should have the same, complying with competitive procurement.

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556
01:24:13.580 --> 01:24:29.119
Boardroom: Thanks, Kelly. Your time's up. And Westlaw is not a law firm. It is a company that you can look up laws on. It's like every law student and most law firms use Westlaw or LexisNexis.

557
01:24:29.120 --> 01:24:41.960
Boardroom: to, look up the laws, and it's, it's something that is also used by USCIS, so it's not that it's a law firm that we're contracting with, so just to clarify for folks. Okay, any other public comments?

558
01:24:42.360 --> 01:24:43.210
Boardroom: A.

559
01:24:43.620 --> 01:24:45.729
Boardroom: Last speaker is Maria Sol.

560
01:24:51.790 --> 01:25:06.260
maria sol: Basic themes. It's always more cost effective to prevent harm than to repair the damage. So that definitely applies to being there for children so that they don't get involved.

561
01:25:06.410 --> 01:25:21.560
maria sol: with guns and violence. It also takes so much to house people, so we want to protect the housing that already exists. Harriet Tubman and, you know, etc. And, of course, to have…

562
01:25:21.690 --> 01:25:23.880
maria sol: ethical and reliable

563
01:25:24.660 --> 01:25:34.809
maria sol: Construction people in contracts so that we're not wasting so much money with bloated and ineffective things and when it comes to the right of way.

564
01:25:34.810 --> 01:25:50.740
maria sol: Who of us has the more right of way? We need to develop courtesy and cooperation. And if CJ Poet doesn't work better together, definitely does. I suggest that as an alternative name. Bless all of you and thank you.

565
01:25:51.660 --> 01:26:01.949

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Boardroom: Thanks, Maria. Okay, that's it. Okay, very good. All right, so someone, would someone like to make a motion? I know there are multiple pieces that are in here.

566
01:26:02.550 --> 01:26:06.629
Boardroom: Would someone like to attempt to make a motion with assistance from the city Clerk?

567
01:26:06.630 --> 01:26:11.800
Rashi Kesarwani: Actually, Madam Mayor, I don't want to make a motion. But can I just make a quick comment?

568
01:26:12.480 --> 01:26:13.870
Boardroom: Sure.

569
01:26:13.870 --> 01:26:19.859
Rashi Kesarwani: Thank you very much, Madam Mayor. I just wanted to respond to my

570
01:26:19.860 --> 01:26:38.810
Rashi Kesarwani: my 0 waste Commissioner's comment about the duration of recycling contracts under this procurement item. We actually had a very robust debate at the Budget and Finance Committee with Alternate Commissioner Tregub and Council Councilmember Blackaby. I said, Commissioner, I apologize.

571
01:26:38.990 --> 01:26:51.610
Rashi Kesarwani: Councilmember Tregoop. You did a lot of commissions, though, in the past, so, and Councilmember Blackaby, about duration of contracts, and whether that should be specified in the ordinance.

572
01:26:51.610 --> 01:26:57.189
Rashi Kesarwani: And ultimately because some contracts have a

573
01:26:57.190 --> 01:27:20.400
Rashi Kesarwani: duration that is longer than 5 to 7 years. We do leave it, General, and we simply refer to the purchasing manual because we were thinking about the recycling contract that has been for 10 years. So I did just want to clarify that that flexibility to have a different length of term was built into the ordinance, and but I thought there was very

574
01:27:20.760 --> 01:27:33.810

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Rashi Kesarwani: important discussion about that issue at the committee. So that's all. And and thank you. And I'm ready to vote. I can make the motion to approve the consent calendar

575
01:27:33.810 --> 01:27:42.429
Rashi Kesarwani: But on the on those items where we have an alternative, I believe we we always want to move the companion report correct.

576
01:27:45.030 --> 01:27:48.970
Boardroom: The city clerk say is giving me a shrug, but I think he means it depends.

577
01:27:48.970 --> 01:27:52.909
Rashi Kesarwani: It's up to us, but I believe that that is the will of the Council.

578
01:27:52.910 --> 01:27:53.760
Boardroom: Yes.

579
01:27:54.220 --> 01:27:54.770
Rashi Kesarwani: Okay.

580
01:27:54.770 --> 01:28:02.060
Boardroom: And with removing 22, I believe, is the one that our city manager brought up, and including the urgency item. Is that right?

581
01:28:04.560 --> 01:28:05.840
Boardroom: Councilmember Kesarwani?

582
01:28:05.840 --> 01:28:11.049
Rashi Kesarwani: Okay, so so removing. Item 22, completely A and B.

583
01:28:11.570 --> 01:28:25.859
Boardroom: Removing item 22A and referring… I'm sorry, removing item 22B and referring item 22A to the Agenda and Rules Committee to be scheduled for when the staff item comes back.

584
01:28:25.860 --> 01:28:39.840
Rashi Kesarwani: Okay, okay. So referring 22 a to agenda and rules and adopting 23 B and 24 B. Those are both the companion reports, and including the urgency ordinance or the urgency item.

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585
01:28:39.840 --> 01:28:42.869
Boardroom: And 20B. 20B also.

586
01:28:44.650 --> 01:28:48.450
Rashi Kesarwani: Okay. Oh, referring 20 B as well.

587
01:28:48.450 --> 01:28:49.950
Boardroom: Approving 20.

588
01:28:49.950 --> 01:28:57.790
Rashi Kesarwani: Oh, adopting. Okay. Oh, that was just another B that we had. Okay, 20 B, I apologize. Okay, I think, is that clear enough?

589
01:28:57.790 --> 01:29:06.520
Boardroom: I appreciate you taking a stab at it. Thank you, Councilmember. Okay, and we have a second over here with Councilmember Blackaby. So, can we take the roll on that, please?

590
01:29:06.520 --> 01:29:21.540
Boardroom: Sure. To approve the consent calendar, including the urgency item and approving items 20B, 23B, and 24B, referring item 22A to the Agenda and Rules Committee for scheduling, Councilmember Kesarwani.

591
01:29:21.540 --> 01:29:22.580
Rashi Kesarwani: Yes.

592
01:29:22.580 --> 01:29:25.349
Boardroom: Taplin, Bartlett, yes.

593
01:29:25.510 --> 01:29:45.650
Boardroom: Traga? Aye. O'Keefe? Yes. Blackaby? Yes. Luna Parra? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, consent calendar is approved as amended. Good job, everyone. Yay, thank you, thanks so much. Okay, alright, so we are gonna take a 10-minute break, just so we can have a turn-by-a-break.

594
01:29:46.220 --> 01:29:47.060
Boardroom: Thank you.

595
01:29:47.450 --> 01:29:49.760
Boardroom: Too quick. So much!

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596
01:29:50.210 --> 01:29:55.520
Boardroom: We are back. Council members. Okay.

597
01:29:55.930 --> 01:29:56.840
Boardroom: Hello!

598
01:29:57.880 --> 01:30:05.540
Boardroom: Mr. City Manager, did you want to introduce this one? I do, thank you, Madam Mayor. I do, because I'm really excited about it.

599
01:30:05.850 --> 01:30:07.280
Boardroom: This is really…

600
01:30:07.780 --> 01:30:23.759
Boardroom: You know, almost 9 years of public process, you know, a strong council referral from almost a decade ago, a ton of work from staff in a lot of departments, a ton of community engagement and feedback that have gone into.

601
01:30:24.270 --> 01:30:36.820
Boardroom: What I think of it in many ways is righting historic wrongs. If you think about 60 years ago, people, mostly Black people, being displaced from South Berkeley when the BART station was built, Ashby BART.

602
01:30:38.020 --> 01:30:46.730
Boardroom: And fast forward to today, where we're bringing before you the developer selection. And I'm also very excited about this development group.

603
01:30:47.830 --> 01:30:52.630
Boardroom: To build, an 100% affordable project.

604
01:30:53.250 --> 01:30:54.989
Boardroom: Upon which we layer.

605
01:30:55.170 --> 01:31:06.539
Boardroom: the preference policy that you all passed at the last meeting, which really preferences people who were pushed out of Berkeley because of the BART. So that whole full circle picture,

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606
01:31:06.600 --> 01:31:15.939
Boardroom: is coming to fruition tonight in a big way, which I feel very proud of as your city manager. And,

607
01:31:16.310 --> 01:31:35.330
Boardroom: There's a lot of detail that they'll go through in these slides. There's a lot of more people to thank, but the city is spending something like $8 million from Measure O on this project and You know, having 341 bedrooms for

608
01:31:35.410 --> 01:31:52.929
Boardroom: people that are all affordable, and hopefully many will come back who had to leave, who were forced out, is just to… I just feel excited and proud, as I said. So, I just wanted to say that before we… before we go, and I will hand it off to our Housing Community Services Manager, Marco Ernst.

609
01:31:53.730 --> 01:31:55.110
Boardroom: Yeah, thank you.

610
01:31:58.200 --> 01:32:01.449
Boardroom: So good evening, Mayor Ishii and members of the Council.

611
01:32:01.630 --> 01:32:10.599
Boardroom: To echo the City Manager's comments, we are really excited to be here tonight for this important project milestone. Sorry, can you pull it closer to you? Sure. Thank you.

612
01:32:11.360 --> 01:32:12.180
Boardroom: How's this?

613
01:32:12.320 --> 01:32:19.419
Boardroom: Does that? Is it coming through? Okay? So again, we're really excited to be here tonight for this important project milestone.

614
01:32:19.830 --> 01:32:37.530
Boardroom: And I'd like to start by introducing my colleagues at the table this evening. So we have Jenny Wyant, who's our affordable housing program manager to my left. And then in the far right, we have Anjanette Scott, who is HCS's housing development supervisor.

615
01:32:38.820 --> 01:32:46.369

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Boardroom: To my immediate right is Kelly DeWolf, the Housing Development Specialist and Project Manager for the East Lot RFP process.

616
01:32:46.750 --> 01:32:58.150
Boardroom: And online, we also have Kirsten Dissinger, our consultant with street level advisors. And so she'll be available to assist with any questions later.

617
01:32:58.380 --> 01:32:59.990
Boardroom: After the presentation.

618
01:33:02.270 --> 01:33:04.020
Boardroom: So next slide, please.

619
01:33:04.560 --> 01:33:08.120
Boardroom: Oh, no, actually, sorry, can you go back to the previous slide?

620
01:33:08.280 --> 01:33:17.970
Boardroom: So we're here tonight with a recommendation to enter into an exclusive negotiating rights agreement with the selected development team for the Ashby East lot.

621
01:33:18.210 --> 01:33:23.369
Boardroom: And to also approve, their allocation of the pre- for the pre-development loan.

622
01:33:24.340 --> 01:33:38.090
Boardroom: And as a reminder, the Ashby BART Station transit-oriented development site was split into two different sites, and they're both shown on this slide, the Ashby East and the Ashby West lots.

623
01:33:40.280 --> 01:33:55.300
Boardroom: Bart conducted a solicitation for the Ashby Westlot last year, where the Adeline Alliance Partners Development Team was selected, so that they they conducted that solicitation similar to the the

624
01:33:55.380 --> 01:34:00.700
Boardroom: the North Berkeley BART site because they remain the owner of those two sites.

625
01:34:00.860 --> 01:34:13.180

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Boardroom: And they are presently the owner of the East Lot, but through, an exchange agreement, which I'm gonna talk a little bit more about later, the city will become the eventual owner of the East Lot.

626
01:34:16.350 --> 01:34:18.240
Boardroom: And next slide, please.

627
01:34:18.720 --> 01:34:29.740
Boardroom: So as shown on this slide, the East Lot is a 1.9 acre parcel with access to Adeline Street and it's bordered by Tremont and Woolsey.

628
01:34:30.030 --> 01:34:31.410
Boardroom: And next slide, please.

629
01:34:35.710 --> 01:34:39.480
Boardroom: So I'm going to go over some key

630
01:34:39.500 --> 01:34:51.510
Boardroom: points in the timeline leading up to tonight. And getting to this stage in the process is the culmination of a nearly 9-year community-engaged process that started in 2018.

631
01:34:51.510 --> 01:35:02.050
Boardroom: with both the passage of Assembly Bill 2923 that gave Bart the ability to set its own transit-oriented development zoning standards on Bart-owned property.

632
01:35:02.290 --> 01:35:11.050
Boardroom: And also the passage of Berkeley's Measure O affordable housing bond that brought in $135 million for the development of affordable housing.

633
01:35:11.670 --> 01:35:17.730
Boardroom: $56 million in Measure O and other Housing Trust Fund dollars, primarily

634
01:35:17.970 --> 01:35:28.790
Boardroom: ha mitigation fees were committed to the two BART station developments in order to increase affordable housing across both transit oriented developments.

635
01:35:29.300 --> 01:35:38.619

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Boardroom: And as the city manager mentioned in the introduction, of that $56 million, about $8 million is designated for the Ashby East lot.

636
01:35:40.250 --> 01:35:49.630
Boardroom: And in 2020, the city and BART entered into an MOU that established the framework for the development of the Ashby and North Berkeley BART stations.

637
01:35:50.040 --> 01:35:58.120
Boardroom: This process included extensive community engagement and brought forth the City and BART's Joint Vision and Priorities document.

638
01:35:58.440 --> 01:36:04.540
Boardroom: Which was and is one of the key guiding documents for the development of both BART stations.

639
01:36:05.240 --> 01:36:14.570
Boardroom: In 2025, when BART and the city executed the exchange agreement, it paved the way for solicitations at both the west and east lots.

640
01:36:15.550 --> 01:36:31.349
Boardroom: In October of 2025, City Council held a work session to discuss the contents of the Ashby East Lot request for proposals, and then in March of this year, City Council authorized the issuance of the RFP, which was released in April.

641
01:36:31.830 --> 01:36:33.299
Boardroom: Next slide, please.

642
01:36:36.260 --> 01:36:48.139
Boardroom: So I want to acknowledge that many of you, our current council members, have been involved in this process since the beginning, and others of you became involved midstream, but with full engagement.

643
01:36:48.640 --> 01:37:00.659
Boardroom: And in addition to your leadership throughout this process, I also want to acknowledge and appreciate many others who participated in the process, including the city manager's office.

644
01:37:01.520 --> 01:37:04.709
Boardroom: A team of folks from the city attorney's office

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645
01:37:05.660 --> 01:37:17.289
Boardroom: Staff from planning from the planning department and health, housing and community services department and and many across these 3 departments are actually here tonight as well.

646
01:37:17.860 --> 01:37:20.280
Boardroom: Staff and representatives from BART,

647
01:37:21.720 --> 01:37:33.950
Boardroom: community members and stakeholders, and I will talk a little bit about the opportunities and ways in which the community members and stakeholders have participated in a future slide.

648
01:37:35.030 --> 01:37:42.239
Boardroom: I'd like to acknowledge the Ashby East Lot Evaluation Panel, which was comprised of 4 city staff.

649
01:37:42.640 --> 01:37:53.980
Boardroom: One BART representative and two community representatives who provided so much thoughtful, engaged feedback, comments, and valuable time towards this selection.

650
01:37:54.190 --> 01:37:56.340
Boardroom: Of this development team.

651
01:37:56.820 --> 01:38:05.090
Boardroom: And of course, the development teams who have invested significant time and effort in responding to the Ashby East Lot request for proposals.

652
01:38:10.240 --> 01:38:14.350
Boardroom: The goal throughout this RFP process has been to identify

653
01:38:14.600 --> 01:38:25.929
Boardroom: A development team and project that responds to the needs and priorities of the community while making thoughtful use of this important public site and honoring South Berkeley's rich history.

654
01:38:28.500 --> 01:38:48.289
Boardroom: Next, slide, please. So, I'd like to take, a moment here, kind of at the beginning of the presentation, to highlight the community engagement opportunities for the East Lot that built on the foundation

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and the extensive work that was done by the Community Advisory Group earlier in the process.

655
01:38:50.220 --> 01:38:57.240
Boardroom: So prior to issuing the RFP, we held a stakeholder meeting in the summer of 2025.

656
01:38:58.230 --> 01:39:02.989
Boardroom: Which was followed by the two council meetings that I mentioned, earlier.

657
01:39:04.480 --> 01:39:10.140
Boardroom: Where the community had an opportunity to weigh in on the RFP contents and the process.

658
01:39:10.790 --> 01:39:13.259
Boardroom: Ahead of reviewing the proposals.

659
01:39:13.380 --> 01:39:22.719
Boardroom: We assembled a community reparative framework committee that established criteria for evaluating the reparative framework element of the proposals.

660
01:39:24.500 --> 01:39:35.329
Boardroom: And earlier this month, we held a community meeting at the South Berkeley Senior Center, where the top two development teams gave presentations to share their vision with the community.

661
01:39:36.530 --> 01:39:48.350
Boardroom: I also want to note, that tonight is an important step, but it's not the end of the community process. There will be additional opportunities for community input as the project moves forward.

662
01:39:50.780 --> 01:39:58.560
Boardroom: Now, I'd like to pass the baton to Kelly DeWolf, who will be presenting the remaining of tonight's presentation.

663
01:39:59.630 --> 01:40:00.989
Boardroom: Thank you, Margo.

664
01:40:01.340 --> 01:40:04.319
Boardroom: Good evening, Mayor Ishii and members of Council.

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665
01:40:05.390 --> 01:40:11.080
Boardroom: I'll begin tonight by briefly giving an overview of the solicitation process.

666
01:40:12.070 --> 01:40:26.969
Boardroom: After staff released the request for proposals in April, the city held a networking reception for interested parties to learn more about the city and community priorities for the East Law, as well as the criteria for the RFP.

667
01:40:27.200 --> 01:40:37.610
Boardroom: The city received 6 strong proposals in July, and the evaluation panel met and reviewed presentations from design and financial consultants on the proposals.

668
01:40:38.000 --> 01:40:49.800
Boardroom: The panel deliberated at three meetings over the course of the next month, bringing the list down to two shortlisted teams. These two team finalists were interviewed by the panel and presented their qualifications.

669
01:40:50.450 --> 01:40:52.620
Boardroom: To the public on October 1st.

670
01:40:53.360 --> 01:41:02.120
Boardroom: At the developer finalist presentation event, the community had an opportunity to provide feedback on the two teams via an online survey.

671
01:41:02.320 --> 01:41:11.310
Boardroom: Staff compiled the survey results and shared them with the evaluation panel, who deliberated and made a final decision on a recommended team earlier this month.

672
01:41:12.830 --> 01:41:19.890
Boardroom: Next, we will give more details on the two proposals, the panel's recommendations, and next steps for the e-slot development process.

673
01:41:20.190 --> 01:41:21.470
Boardroom: Next slide, please.

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674
01:41:23.230 --> 01:41:32.369
Boardroom: This is an overview of the priorities that were outlined in the Joint Vision and Priorities and the Exchange Agreement documents between the City and BART.

675
01:41:32.570 --> 01:41:39.499
Boardroom: These documents were developed as a result of the years-long community process that Margo mentioned with the community advisory group.

676
01:41:40.800 --> 01:41:51.719
Boardroom: A minimum of 300 bedrooms is the first threshold requirement for the East Law, and one reason to focus on bedrooms instead of units is to ensure flexibility in housing types.

677
01:41:52.600 --> 01:42:03.529
Boardroom: Another threshold requirement for the East lot was a minimum of 35% affordability. The RFP included a goal of 50% of affordable units.

678
01:42:07.320 --> 01:42:13.790
Boardroom: A community and city goal was to prioritize proposals that incorporated a thoughtful and meaningful reparative framework.

679
01:42:13.970 --> 01:42:21.110
Boardroom: That addressed historical harms caused by displacement and its impacts on African American residents and businesses.

680
01:42:21.210 --> 01:42:28.069
Boardroom: This included a requirement for some portion of proceeds to be contributed toward the South Berkeley Community Benefits Fund.

681
01:42:28.760 --> 01:42:34.769
Boardroom: Additionally, points were awarded to proposals that demonstrated a creative approach to universal design.

682
01:42:34.890 --> 01:42:39.349
Boardroom: and provided a 25% set aside for residents with disability.

683
01:42:41.280 --> 01:42:42.760
Boardroom: Next slide, please.

684
01:42:45.020 --> 01:42:53.260

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Boardroom: In addition to these key community priorities and requirements, the panel also scored written proposals according to a few other standards.

685
01:42:54.250 --> 01:43:01.480
Boardroom: Panelists looked for proposals that met e-slot design standards and that provided required amounts of open space.

686
01:43:03.780 --> 01:43:16.600
Boardroom: Panelists were also looking for teams who had experience with larger-scale, multi-phase projects, transit-oriented developments, and demonstrated experience with incorporating community feedback into the design of past projects.

687
01:43:17.880 --> 01:43:28.700
Boardroom: Teams that had experience with ground leases and public-private partnerships, and who prepared financial proposals and financial offers that were reasonable and feasible.

688
01:43:29.110 --> 01:43:30.499
Boardroom: Next slide, please.

689
01:43:33.670 --> 01:43:38.189
Boardroom: These are the two shortlisted teams that the evaluation panel selected.

690
01:43:38.590 --> 01:43:50.350
Boardroom: The first team, the SAHA team, was led by Satellite Affordable Housing Associates and includes also Habitat for Humanity, East Bay Silicon Valley, and Deborah Matthews Development Consulting.

691
01:43:50.370 --> 01:44:00.369
Boardroom: Saha's design team consists of the lead architect firm Pyatalk, Hood Design Studio, and its universal design team, Architecture for the Blind, and the Idea Center.

692
01:44:00.800 --> 01:44:04.369
Boardroom: and Jeffrey Holton and Associates as its for-sale architect.

693
01:44:04.910 --> 01:44:12.589
Boardroom: Its service providers consisted of Toolworks, East Bay Innovations, along with Saha's own in-house service provider.

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694
01:44:12.950 --> 01:44:19.159
Boardroom: The second team, the related team, includes related partner, related California partnered with the Kelsey.

695
01:44:19.430 --> 01:44:32.210
Boardroom: Its design team is led by Mithun, the art of access as its universal design partner with YES Community Architects. And the Kelsey was also presented as its service provider. Next slide, please.

696
01:44:35.640 --> 01:44:39.220
Boardroom: In total, the teams were scored in three major areas.

697
01:44:39.420 --> 01:44:50.880
Boardroom: The bulk of the points that were awarded to the proposals were for the city and community priorities described in the previous slides, which were presented in the written proposals and could be scored up to a maximum of 80 points.

698
01:44:51.080 --> 01:45:05.330
Boardroom: The two finalist teams were also scored on their interviews, which were scored up to 12 points, and on their public presentations, which were scored up to eight points, based on their ability to present qualifications and proposals to the evaluation panel and to the public.

699
01:45:06.910 --> 01:45:08.410
Boardroom: Next slide, please.

700
01:45:09.800 --> 01:45:17.200
Boardroom: The city is happy to announce that the evaluation team is presenting the Saha team as the recommended developer for the Ashby East lot.

701
01:45:18.010 --> 01:45:25.190
Boardroom: The evaluation panel Noted that both teams had very strong proposals.

702
01:45:27.160 --> 01:45:29.240
Boardroom: The SAHA team presented

703
01:45:29.510 --> 01:45:40.980
Boardroom: Both teams presented an 100% affordable proposal, and both teams also presented a 25% set aside for people with disabilities.

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704
01:45:43.300 --> 01:45:50.239
Boardroom: The Saha team presented a proposal with one multifamily rental building, and

705
01:45:50.440 --> 01:45:59.130
Boardroom: 12 affordable for-sale townhomes, which would be available for residents earning up to 80% of the area median income.

706
01:46:00.360 --> 01:46:06.079
Boardroom: whereas the related team focused on 2 rental buildings, one available for

707
01:46:06.520 --> 01:46:09.719
Boardroom: Families and one available for seniors.

708
01:46:12.520 --> 01:46:31.599
Boardroom: In terms of unit counts, you'll notice that the unit counts offered by the related team has a slightly higher unit count at 250 units than the SAHA team's units offered at 174 units. But the bedroom counts were very similar.

709
01:46:31.720 --> 01:46:41.239
Boardroom: This is because the related team proposal focused more on smaller unit sizes for the senior rental building, but both bedroom

710
01:46:41.490 --> 01:46:47.069
Boardroom: Numbers were very similar and offer a similar density between the two projects.

711
01:46:53.110 --> 01:46:57.050
Boardroom: The rental housing proposed would have affordability levels.

712
01:46:57.380 --> 01:47:00.979
Boardroom: Capping at 60% of the area median income.

713
01:47:02.260 --> 01:47:03.730
Boardroom: Next slide, please.

714
01:47:06.370 --> 01:47:13.980

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Boardroom: Both teams had extremely strong proposals that met the minimum threshold criteria for the site and highly experienced teams.

715
01:47:16.850 --> 01:47:27.230
Boardroom: The evaluation panel is therefore suggesting tonight that Council authorize the related team as an alternate team in case negotiations are at any point terminated with the recommended team.

716
01:47:30.600 --> 01:47:35.310
Boardroom: The evaluation panel scored the SAHA team very highly based on its alignment with

717
01:47:35.530 --> 01:47:38.650
Boardroom: Design priorities, including generous open space.

718
01:47:38.810 --> 01:47:44.840
Boardroom: Deep local knowledge of the South Berkeley community and leadership with an experienced nonprofit developer.

719
01:47:45.010 --> 01:47:49.819
Boardroom: Support for the recommended team from the community was also reflected in the survey results.

720
01:47:51.290 --> 01:48:07.360
Boardroom: The evaluation panel was excited to see the team's proposal also included opportunities for affordable homeownership, which was a priority for council and the community, and a thoughtful and well-developed reparative framework that included plans for incorporation of historically and culturally relevant artwork.

721
01:48:07.490 --> 01:48:17.119
Boardroom: Education on the history of redlining in South Berkeley, economic opportunities for South Berkeley residents, and local hiring practices for the development itself.

722
01:48:19.710 --> 01:48:21.090
Boardroom: Next slide, please.

723
01:48:24.360 --> 01:48:36.919
Boardroom: On the Saha team, Saha will serve as the lead developer with a 95% interest in the rental project and will partner with Deborah Matthews Consulting, who will have a 5% interest.

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724
01:48:37.540 --> 01:48:41.710
Boardroom: Habitat will be responsible for the homeownership portion of the project.

725
01:48:41.920 --> 01:48:45.960
Boardroom: And will be responsible for the management and sale of the townhomes.

726
01:48:46.880 --> 01:48:53.479
Boardroom: The lead architect firm is Piatok, and the universal design team is Architecture for the Blind and the Idea Center.

727
01:48:56.200 --> 01:48:57.509
Boardroom: Next slide, please.

728
01:49:01.330 --> 01:49:09.450
Boardroom: I wanted to also share with you some of the past project experience for the SAHA team. On the left, we have the Flickerbird homes.

729
01:49:09.770 --> 01:49:15.869
Boardroom: Which is a family rental and a mixed-use project that is in partnership with the Native American Health Center.

730
01:49:16.040 --> 01:49:23.889
Boardroom: That provides medical, dental, behavioral health, and social programs, along with family housing, and also provides a cultural community center.

731
01:49:26.160 --> 01:49:37.000
Boardroom: Ancora Place on the right is a transit-oriented development that has won multiple awards for its design, planning, and development, located in the Fruitvale neighborhood in Oakland.

732
01:49:37.250 --> 01:49:44.669
Boardroom: Both of these developments, located in Oakland, demonstrate the SAHA team's experience with similar projects.

733
01:49:45.520 --> 01:49:48.430
Boardroom: Of similar scale and use.

734
01:49:48.920 --> 01:49:52.119

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Boardroom: to the projects, To the project that we…

735
01:49:52.630 --> 01:49:55.790
Boardroom: that the city anticipates on the East lot.

736
01:49:56.960 --> 01:49:58.359
Boardroom: Next slide, please.

737
01:50:02.620 --> 01:50:03.939
Boardroom: On this slide.

738
01:50:04.840 --> 01:50:23.629
Boardroom: we're showing two of the City of Berkeley projects, that the SAHA team has completed or are soon to complete. On the left is the Grinnell, which is located in West Berkeley, completed in 2024, a transit-oriented, independent, inclusive living project.

739
01:50:23.840 --> 01:50:26.560
Boardroom: And on the right is the catalyst.

740
01:50:26.740 --> 01:50:32.309
Boardroom: Busd workforce housing project, which is soon to be complete.

741
01:50:32.600 --> 01:50:38.789
Boardroom: It's about 90% complete, and is anticipated to be complete in early

742
01:50:38.910 --> 01:50:44.989
Boardroom: 2027, and this is in collaboration with the Berkeley Unified School District.

743
01:50:47.440 --> 01:50:48.749
Boardroom: Next slide, please.

744
01:50:49.680 --> 01:51:03.660
Boardroom: After Council's decision tonight, city staff will be tasked with negotiations with the recommended development team, which will authorize the city manager to sign an exclusive negotiating rights agreement with the development team.

745
01:51:04.850 --> 01:51:13.610

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Boardroom: Which will author… which will kick off an exclusive negotiating rights agreement period, anticipated to last up to 12 months.

746
01:51:14.070 --> 01:51:18.409
Boardroom: Concurrently, the development team will engage the local community

747
01:51:18.900 --> 01:51:21.499
Boardroom: Around the design and vision for the project.

748
01:51:21.730 --> 01:51:25.430
Boardroom: The negotiation period will determine the terms of the ground lease.

749
01:51:25.690 --> 01:51:30.160
Boardroom: And these terms will go to Council for approval when the period is complete.

750
01:51:31.500 --> 01:51:45.389
Boardroom: The land exchange, which was authorized by Council last October, and subsequent declaration of the land as surplus, would take place at some point before construction loan closing, depending on the preferences of the City and the development team.

751
01:51:46.510 --> 01:51:52.540
Boardroom: At the earliest, the development team anticipates construction closing in December of 2031.

752
01:51:54.100 --> 01:51:55.459
Boardroom: Next slide, please.

753
01:51:57.210 --> 01:52:00.299
Boardroom: I just wanted to recap the recommendations.

754
01:52:00.430 --> 01:52:08.040
Boardroom: the recommended actions for Council tonight, and the recommended adoption of 2 resolutions for this item.

755
01:52:08.750 --> 01:52:12.639
Boardroom: And there are 3 major recommendations as part of those 2 resolutions.

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756
01:52:13.250 --> 01:52:19.859
Boardroom: The first is that the city manager enter into an ENRA with the SAHA team.

757
01:52:20.750 --> 01:52:30.560
Boardroom: and authorizing the city manager to enter into an ENRA with the related team as a backup, should the negotiations be terminated with the chosen development team.

758
01:52:30.680 --> 01:52:46.610
Boardroom: The reason for this recommendation is because this was also a strong team. And if for any reason the negotiation with the chosen team doesn't work out, this would put us in a position to move quickly and efficiently and to keep the process moving forward instead of needing to restart.

759
01:52:48.200 --> 01:52:57.650
Boardroom: The final recommendation is to authorize the previously reserved $1 million pre-development loan for the Ashby East lot for the recommended development team.

760
01:53:01.700 --> 01:53:04.529
Boardroom: E-slot to support development activities.

761
01:53:05.310 --> 01:53:07.030
Boardroom: Later on in the process.

762
01:53:09.000 --> 01:53:14.870
Boardroom: And this concludes my presentation. Thank you so much for your time. Our team would be happy to answer any questions.

763
01:53:15.140 --> 01:53:29.360
Boardroom: Thank you. Thank you all so much. Really appreciate the presentation and just all of the time and energy and listening that went into this process. It's so incredibly important.

764
01:53:29.360 --> 01:53:38.379
Boardroom: Certainly biased as Ben's favorite D3 resident. But I just want to see if anyone has any questions.

765
01:53:39.310 --> 01:53:54.509

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Boardroom: To start? No? Okay. Well, we will take public comment on this item, and for folks who are just tuning in, we're on item number 30, Ashby BART East Lot Developer Selection for Exclusive Negotiation and Reservation of Predevelopment Funding.

766
01:53:55.090 --> 01:53:57.560
Boardroom: All right, good, come on up!

767
01:53:58.030 --> 01:54:06.870
Boardroom: Good evening, Mayor and Council members. My name is James Conlin. I'm the Associate Director of Real Estate Development at Satellite Affordable Housing Associates.

768
01:54:06.890 --> 01:54:17.140
Boardroom: And I just wanted to come up and say a couple of words on behalf of our team, who's also here tonight, Saha, Habitat for Humanity East Bay Silicon Valley, and Deborah Matthews Development Consulting.

769
01:54:17.160 --> 01:54:29.170
Boardroom: We're all very honored by the selection panel's recommendation to move forward with our team for the Ashby E-slot project, and we appreciate Council's consideration.

770
01:54:29.170 --> 01:54:42.939
Boardroom: And as a South Berkeley-based organization, this is an especially meaningful opportunity for us. Saha's offices are in the neighborhood, just a couple blocks away from the project.

771
01:54:42.940 --> 01:54:56.779
Boardroom: And yeah, our team is just very excited to bring new affordable rental and affordable homeownership opportunities to the neighborhood. And we're looking forward to working with the city and engaging with the community to develop the plans together.

772
01:54:57.100 --> 01:54:58.960
Boardroom: Thank you. Thank you.

773
01:55:04.180 --> 01:55:07.910
Boardroom: My non-agenda,

774
01:55:08.090 --> 01:55:21.990
Boardroom: Sorry, we're talking about item number 30. Do you have a comment? It has something to do with this, so I wanted to make a little

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comment before I spoke about something else. My question is, have you checked out Saha's

775
01:55:22.050 --> 01:55:39.719
Boardroom: code enforcement violations, and fire department violations, and lawsuits against them, as well as problems with the tenants, and many, many other things. And have you considered any of that? Because it's been going on for years.

776
01:55:43.580 --> 01:55:47.490
Boardroom: Thank you. Are there other public comments?

777
01:55:48.110 --> 01:55:49.120
Boardroom: Online?

778
01:55:50.080 --> 01:55:56.590
Boardroom: So, we're now taking public comment on item 30, Ashby Bart E-Slot Developer Selection.

779
01:55:56.750 --> 01:56:00.680
Boardroom: If you're on the Zoom and you want to speak, please raise your hand.

780
01:56:02.370 --> 01:56:05.250
Boardroom: We have one hand raised, Maria Sol.

781
01:56:07.850 --> 01:56:27.849
maria sol: Okay, so I know I'm not perfect, and I know nothing is. And I know that if I see that there's room for improvement, I would really, really, really like to be able to do that. So Saha is housing a bazillion people that are very grateful, including me.

782
01:56:28.050 --> 01:56:32.220
maria sol: And I'm hoping that they don't get too big to fail.

783
01:56:32.480 --> 01:56:41.109
maria sol: And that they might be more open to exactly what that last woman spoke to, which is dialogue, not…

784
01:56:41.360 --> 01:56:56.300

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maria sol: combat, you know, a combat or conflict, but how can we all help each other improve? Because they're providing such a useful function, and yet, sometimes.

785
01:56:57.170 --> 01:56:59.129
maria sol: And Igor knows this.

786
01:56:59.830 --> 01:57:06.100
maria sol: They do not pay attention to critical safety and security issues. So…

787
01:57:06.660 --> 01:57:12.650
maria sol: Can we all help each other? Help each other, please. It's my constant bottom line principle.

788
01:57:12.650 --> 01:57:13.170
Boardroom: Thanks.

789
01:57:13.460 --> 01:57:14.510
maria sol: Thank you.

790
01:57:18.830 --> 01:57:23.650
Boardroom: Okay, are there any comments from my Councilmember colleagues? I want to start with Councilmember Bartlett, please.

791
01:57:24.540 --> 01:57:25.860
Boardroom: Thank you, Madam Mayor.

792
01:57:26.090 --> 01:57:38.299
Boardroom: And I want to thank the city manager for your comments and thank the team for your wonderful work and, and and thank, thank the, the, the applicants who I'm happy to support tonight for your diligent package.

793
01:57:38.300 --> 01:57:55.459
Boardroom: You know, this piece of land, you know, was a place of a thriving ecosystem, and we heard the story before. These are homeowners, they're business owners, they had an economic vitality that was unceremoniously ripped away from them.

794
01:57:55.510 --> 01:58:10.090

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Boardroom: And so, so much of this last, this last number of years, and I was involved on the planning commission before I was elected, so for me, it's like my entire adult life has been involved in working on this. And all these conversations, all these, this decade plus of community meetings and things.

795
01:58:10.090 --> 01:58:20.489
Boardroom: You know, the, the notion of repair keeps coming up, right, reparative frameworks and, you know, and repair, repair, repair, and, and, you know, I've, I've had to temper.

796
01:58:20.610 --> 01:58:28.990
Boardroom: People's notion of repair, repeatedly because I said before, replacing someone's house.

797
01:58:29.280 --> 01:58:31.940
Boardroom: With a government apartment is not repair.

798
01:58:32.260 --> 01:58:51.029
Boardroom: Right? And so, this, this site, unlike the other site, the west lot, the east lot, is different in that we actually own it, the city owns it, and we can really, you know, have our way with it. And so, in this instance, we, we, this council put forward, some concepts.

799
01:58:51.580 --> 01:59:04.990
Boardroom: to be new people involved, local people who could bring their expertise and local knowledge and duty of care to the community with an emphasis on accessibility.

800
01:59:05.410 --> 01:59:19.609
Boardroom: noting Ed Roberts campus people and specifically honing in on the economic aspects of repair, making truly reparative framework. And so this team here has brought all these elements to bear.

801
01:59:19.730 --> 01:59:21.219
Boardroom: I couldn't be more proud.

802
01:59:21.340 --> 01:59:23.279
Boardroom: You are local?

803
01:59:23.630 --> 01:59:24.860
Boardroom: You're different.

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804
01:59:25.120 --> 01:59:26.340
Boardroom: You knew?

805
01:59:26.460 --> 01:59:28.070
Boardroom: Talking to you, Ms. Matthews.

806
01:59:28.250 --> 01:59:44.280
Boardroom: You know, getting a chance to fulfill your dreams here. It's fantastic to see it. And you've said it, you got the best designers for the disabled community. And most importantly to myself and to the people who I truly represent, you brought ownership there.

807
01:59:44.620 --> 02:00:01.020
Boardroom: And the ownership, while it may seem small, 12 townhouses, but the building's only 350 units, apartments or people. So 12 townhouses in a cash-strapped environment, I know to creative.

808
02:00:01.210 --> 02:00:03.449
Boardroom: Creative force on your part.

809
02:00:04.080 --> 02:00:17.640
Boardroom: and commitment to true economic repair, and I'm so happy and so proud of you, and this is a really important day for me, and I'm really thankful for all the work you've done, and I support you 110%.

810
02:00:19.500 --> 02:00:30.820
Boardroom: Thank you. I know folks are trying to press their buttons and it's not working. I think… was Councilmember Tragué up first? Okay, and then Councilmember Humbert, and then Councilmember Blackaby? Yeah.

811
02:00:33.210 --> 02:00:42.700
Boardroom: This is one of the proudest moments for me, on this council in my relatively short time here.

812
02:00:42.810 --> 02:00:48.520
Boardroom: because to Councilmember, as Councilmember Bartlett mentioned.

813
02:00:49.040 --> 02:00:54.330
Boardroom: The work started long ago.

814
02:00:54.500 --> 02:00:55.600

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Boardroom: And…

815
02:00:56.650 --> 02:01:05.740
Boardroom: I am thinking back and I am going to, there will probably be tears in my eyes when I say this.

816
02:01:06.070 --> 02:01:22.539
Boardroom: I think back on when we wrote and then passed the measure, the $135 million housing bond known as Measure O in 2018.

817
02:01:22.810 --> 02:01:27.340
Boardroom: The Measure O Committee that I chaired.

818
02:01:27.500 --> 02:01:39.900
Boardroom: worked with the Council and with staff to make a recommendation of which $8 million was allocated,

819
02:01:40.420 --> 02:01:48.880
Boardroom: To this project, and… What we're seeing now is, the fulfillment

820
02:01:49.250 --> 02:01:57.620
Boardroom: of that promise to redress the historic wrongs that were done.

821
02:01:57.890 --> 02:01:59.130
Boardroom: to,

822
02:02:00.040 --> 02:02:19.050
Boardroom: a critical community in South Berkeley. So I'm really excited about this. I'm excited that both the finalist and the runner up have

823
02:02:19.530 --> 02:02:28.320
Boardroom: An incredible depth of and breadth of talent, and that, both, have.

824
02:02:30.980 --> 02:02:36.210
Boardroom: just a very local tie in to that community.

825
02:02:36.480 --> 02:02:48.879
Boardroom: And I, congratulate everyone Who, has spent countless hours helping, disc Beloved community.

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826
02:02:48.990 --> 02:02:58.319
Boardroom: get to the point where we can start moving forward. I know that there's still a process

827
02:02:58.320 --> 02:03:12.380
Boardroom: before ground is broken, and a process still before, these units are made ready for occupancy. And I know that the need is going to be much greater than,

828
02:03:12.380 --> 02:03:31.179
Boardroom: the number of units, and bedrooms that are provided, but this is a critical first step, and I am, just incredibly, proud of the work and honored to be here tonight. It's very special for me, and thank you so much.

829
02:03:32.130 --> 02:03:33.979
Boardroom: Thank you, Councilmember Humbert.

830
02:03:34.290 --> 02:03:40.560
Boardroom: Thank you, Madam Mayor. My comments may actually exceed in length, those of Councilmember Treegubs for that.

831
02:03:40.570 --> 02:04:00.229
Boardroom: Which would be kind of unusual. Just kidding. I am incredibly pleased, thankful, and proud of our city that we've reached this critical milestone for the Ashby Bart East Lot project. It's very near where my district intersects with Councilmember Bartlett's.

832
02:04:00.240 --> 02:04:17.349
Boardroom: I have a real personal investment in this. There are so many people to thank for, for all their work. It's such a team effort, and I wanna, I, I really wanna read some names, and, and, and laud them, and, and thank them, and recognize them. HHCI, HH…

833
02:04:17.360 --> 02:04:30.029
Boardroom: HHCS Director Gilman and HHCS staff, especially Kelly DeWolf, Jenny Winant, Margo Ernst. Planning Director Klein and planning staff, especially Uttara Ramakrishnan.

834
02:04:30.030 --> 02:04:38.020

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Boardroom: City Manager Paul Budenhagen and his staff, City Attorney Brown and her staff, street level advisors for their work on the selection framework.

835
02:04:38.060 --> 02:04:51.689
Boardroom: Former mayor and now state senator Jesse Aragine for his work to get this off the ground. And again to Senator Aragine and then BART director, now Congresswoman Latifah Simon and their teams for their work on negotiations.

836
02:04:51.700 --> 02:05:05.430
Boardroom: The evaluation panelists, including members from BART, city staff, and South Berkeley residents. BART's property development team. Thank you to all of the responding teams who submitted, including related Kelsey, who were a strong alternate, but especially, of course.

837
02:05:05.430 --> 02:05:16.749
Boardroom: through our selected team, including Habitat for Humanity, East Bay Silicon Valley, Debra D. Matthews Consulting, and of course, Saha, who has been a key city partner for many years.

838
02:05:16.790 --> 02:05:31.780
Boardroom: Thank you to Equity for Black Berkeley, the Center for Independent Living, the Ed Roberts Campus, and other community organizations that participated in developing the RFP and the selection process. A big thanks to all the people who participated in stakeholder meetings.

839
02:05:31.940 --> 02:05:49.389
Boardroom: And the city's processes. Thank you to the late Mabel Howard, who fought on behalf of the South Berkeley community to get BART tracks put underground. And to Mabel's daughter, the artist Mildred Howard, whose sculpture at Ashby Station honors her mother's fight. And finally, a huge thanks

840
02:05:49.390 --> 02:06:03.370
Boardroom: to Councilmember and former Vice Mayor, Ben Bartlett, for all the energy, dedication, persistence, and creativity he has exhibited in moving this project to this point in time. Thank you, Ben.

841
02:06:03.510 --> 02:06:21.660
Boardroom: Please forgive me if I missed anybody. I thank all of you who had any role in this whatsoever. The project is so important to Berkeley's efforts to provide affordable homes, enliven the Ashby-Bart area, and heal the historic fabric, or at least move in that direction.

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842
02:06:21.660 --> 02:06:30.290
Boardroom: of the neighborhood while also attempting to move toward righting historic wrongs. I think we're all very glad to have Bart, of course.

843
02:06:30.290 --> 02:06:46.010
Boardroom: And thankful to the visionaries who achieved our regional transit system. But at the same time, we can't whitewash the fact that BART's construction displaced many Berkeley families and local businesses, and that this burden was borne most severely by Berkeley's Black community.

844
02:06:46.200 --> 02:06:57.560
Boardroom: Many people were not adequately compensated at all for these losses, and the wounds Bart's construction left in the physical and social fabric are still there.

845
02:06:57.660 --> 02:07:08.880
Boardroom: This is one step to begin healing those wounds. They don't repair them, as Councilmember Bartlett said, but it's a move in the right direction.

846
02:07:08.880 --> 02:07:18.039
Boardroom: Both with respect to replacing lost homes to the extent we ever can, and endeavoring to make sure those impacted or their descendants are made

847
02:07:18.070 --> 02:07:34.750
Boardroom: you know, if not whole, you know, are provided with some benefits. And then, of course, it bears repeating that this project would bring desperately needed affordable, and I'm really excited to say at least some affordable ownership housing to the neighborhood.

848
02:07:34.750 --> 02:07:41.469
Boardroom: So again, a huge thank you to all involved and I'm really excited to see this moving forward. It's wonderful. Thanks.

849
02:07:41.710 --> 02:07:44.059
Boardroom: Thank you so much, Councilmember Blackaby.

850
02:07:44.060 --> 02:08:05.219

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Boardroom: Thank you, Madam Mayor, and let me just add my thanks. I'll be brief, but thank you to our really talented city staff who've brought this forward from HHCS, from planning, from the city manager's office, from the city attorney's team for helping us wrangle this process and end up with an end product that we're really proud of.

851
02:08:05.330 --> 02:08:15.330
Boardroom: Thank you to the SAHA team, Deborah Matthews, for being the successful bidder. We're really looking forward to what you bring us and what we can do together.

852
02:08:15.330 --> 02:08:29.549
Boardroom: And thank you to Councilmember Bartlett for his leadership and really being a fighter for this project and for South Berkeley. This is going to make a material difference, and I'm really looking forward to seeing what comes.

853
02:08:29.550 --> 02:08:35.489
Boardroom: I am a little more of a numbers guy, and so I did want to kind of go back and just comment at…

854
02:08:35.610 --> 02:08:50.859
Boardroom: I was really amazed by the proposal we came back. If you look at what we set for expectations and then what comes back in the proposal, you know, we're meeting the 25% requirement for setting aside for people with disabilities.

855
02:08:51.100 --> 02:08:57.809
Boardroom: You know, we'd set a goal of 300 bedrooms, and we're bringing 341 bedrooms with this project.

856
02:08:57.860 --> 02:09:14.039
Boardroom: We had set a 35% requirement for affordable housing. We set a stretch goal for 50%, and I remember the conversation at the council, like, well, you know, we want to get as much as we can, but we want to make sure that we can make this pencil and make sure the economics work.

857
02:09:14.060 --> 02:09:29.680
Boardroom: Not only did we get 35, not only did we get 50, we ended up with 100% affordable, which I think is just a remarkable achievement and so important. And then I think we had had a discussion about interest in having not just rental housing, but ownership housing.

858
02:09:29.680 --> 02:09:40.339

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Boardroom: And, and we have 12… 12 affordable, ownership units that are coming online. There was not even a requirement to have produced it, but that's what we have.

859
02:09:40.620 --> 02:09:47.369
Boardroom: in this project. So I just really impressed and thankful for all the work here.

860
02:09:47.440 --> 02:09:54.550
Boardroom: This is exactly the kind of public-private partnership we need. This is exactly the kind of affordable.

861
02:09:54.550 --> 02:10:06.199
Boardroom: housing we know we need to build and more of it and as fast as we can. So I really hope that this is really a model for us moving forward and we can do more of these in more places and find opportunities.

862
02:10:06.200 --> 02:10:18.219
Boardroom: Again, you know, we know that housing at all price points is useful, but in particular that we can actually deliver affordable housing is really impressive. So thank you.

863
02:10:20.440 --> 02:10:23.810
Boardroom: Thank you. I see that Councilmember Kesarwani has her hand raised.

864
02:10:24.230 --> 02:10:31.089
Rashi Kesarwani: Thank you very much, Madam Mayor. Thank you for this presentation tonight, and congratulations.

865
02:10:36.250 --> 02:10:38.850
Boardroom: Councilmember, you've frozen.

866
02:10:41.420 --> 02:10:42.110
Boardroom: Oh.

867
02:10:43.110 --> 02:10:48.630
Boardroom: Perhaps we will come back to her. Does anyone else have comments? I don't know.

868
02:10:48.630 --> 02:10:50.310

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Rashi Kesarwani: Let me… oh, no.

869
02:10:50.860 --> 02:10:52.910
Boardroom: Okay. Councilmember?

870
02:10:53.130 --> 02:10:56.699
Rashi Kesarwani: I don't know. It's saying it's unstable. Let me try to move.

871
02:10:57.020 --> 02:11:00.590
Rashi Kesarwani: To see if I can get to a stronger

872
02:11:01.250 --> 02:11:07.429
Rashi Kesarwani: location. But maybe maybe you should go to somebody else while I try to fix that.

873
02:11:07.430 --> 02:11:25.540
Boardroom: Kaplan, did you want to give comments while Councilmember Kesarwani, works out her tech… technical difficulties? Thank you. This will be brief, so hopefully she can move pretty quickly. I wanted to, echo, how inspiring this is, and… and how… how moved and relieved I am that the process has been so successful.

874
02:11:25.600 --> 02:11:33.930
Boardroom: And I want to say congrats to you, Deborah. I remember, you know, when I participated on the walking tour, the history tour that day, and

875
02:11:34.050 --> 02:11:48.839
Boardroom: And in the future of your work, your legacy together with former Vice Mayor Bartlett will be part of the next walking tour. So thank you so much for your work. And I'm honored I get to play the small role I'm playing in this tonight. Thank you.

876
02:11:49.240 --> 02:11:51.890
Boardroom: Thank you. Councilmember Kesarwani, do you want to try again?

877
02:11:52.540 --> 02:12:03.699
Rashi Kesarwani: Okay, yes, hopefully this will work. So, so I started by, you know, thanking staff, and I want to congratulate the team that won, Saha, Habitat for Humanity, and Deborah Matthews.

878

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02:12:03.700 --> 02:12:14.259
Rashi Kesarwani: I'm really excited by your proposal, and I also, you know, there was a slide… unfortunately, it's not in the staff report, but there was a slide

879
02:12:14.260 --> 02:12:25.279
Rashi Kesarwani: Calling out all of the staff, professional teams that were involved in this. So there's HHCS staff. Planning staff, city attorney's office.

880
02:12:25.910 --> 02:12:42.470
Rashi Kesarwani: folks on the BART side that negotiated, and there are probably others. Maybe… maybe staff can pull up that slide again, because this has been, you know, a long effort beginning in 2018, and I… because I was around, I just want to remind us.

881
02:12:42.470 --> 02:12:54.729
Rashi Kesarwani: the Ashby development started at the same time as the North Berkeley BART development, and the reason why it has taken so much longer… well, it's not that long, not that much longer, but it took a little longer.

882
02:12:55.060 --> 02:13:02.489
Rashi Kesarwani: It's because these two parcels are very complex, right? You have the west lot, it's an unusual shape.

883
02:13:02.550 --> 02:13:15.260
Rashi Kesarwani: Right? And then you have this e-slot. So… so our staff And, you know, with the help of outside consultants who are experts on real estate, had to negotiate with BARD. We had

884
02:13:15.260 --> 02:13:26.739
Rashi Kesarwani: The Ashby Air rights were also a part of this, and so we had to negotiate, and that is why we now hold this East lot. That is why it is now City of Berkeley property. So that…

885
02:13:26.810 --> 02:13:46.330
Rashi Kesarwani: is also part of this, all of that negotiation to be able to have this property where we can now… you know, I think BART has been a very good partner to us, but this lot is really ours as a city, so we put out our request for proposal that included

886
02:13:46.410 --> 02:13:50.839

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Rashi Kesarwani: the desire for the home ownership component. And that is why

887
02:13:51.050 --> 02:13:58.889
Rashi Kesarwani: you know, SAHA included that in their proposal, and it's really gratifying, that they have been selected, and we will have that

888
02:13:59.110 --> 02:14:01.649
Rashi Kesarwani: that component of this project.

889
02:14:01.680 --> 02:14:03.439
Rashi Kesarwani: And,

890
02:14:03.460 --> 02:14:12.489
Rashi Kesarwani: I think, so anyhow, so I think that's really all I wanted to say, is just, I just wanted to lift up all of the work that has gone into this, and

891
02:14:12.490 --> 02:14:26.240
Rashi Kesarwani: There, as was noted in the presentation, there's more work to come, and we know with a 100% affordable housing development like this one, as important as it is and as needed as it is, it requires more

892
02:14:26.240 --> 02:14:41.019
Rashi Kesarwani: than just the city's commitment, and we made a major commitment with Measure O funds and Housing Trust Fund dollars, but we know they'll be relying on that funding stack, and so that will take some time to put together, but hopefully that can happen

893
02:14:41.200 --> 02:14:54.340
Rashi Kesarwani: expeditiously, and… and, you know, I hope to be able to attend that… that ribbon cutting, soon. So, thank you very much again, and, really pleased to be able to vote on this.

894
02:14:54.760 --> 02:14:56.600
Boardroom: Thank you. Councilmember Luna Parra?

895
02:14:57.800 --> 02:15:16.310
Boardroom: Thank you. I… my comments would be repetitive of all of my colleagues' incredible comments, so I'm gonna keep it short. I'm just very grateful to staff for all of your work, and to the community members who have put so much time into this, and really proud of our city that we're moving forward with this. I think…

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896
02:15:16.530 --> 02:15:33.080
Boardroom: along with many people who have who have seen this work start for for many years now. I was very surprised to see the 100% affordable housing on this site. And I think it's really exciting. So thank you.

897
02:15:33.670 --> 02:15:35.400
Boardroom: Thank you, Councilmember O'Keefe.

898
02:15:36.510 --> 02:15:42.619
Boardroom: Yeah, same as Councilmember Luna Parr, I'll just, you know, plus one to everything that's been said, and just add that

899
02:15:42.990 --> 02:15:44.309
Boardroom: You know, there's,

900
02:15:44.390 --> 02:15:59.739
Boardroom: There's not that many wins in this line of work, and this feels like a really big, really big win. And I agree, it's just incredible that this is happening. And it's a win. I'm, like, excited to vote for it, but I did not do anything to make this happen, so I just want to echo again, thank you so much to all the staff.

901
02:15:59.740 --> 02:16:05.170
Boardroom: Time and all the time put in from the community, it's just, it's really incredible and just so happy to be a part of it.

902
02:16:05.530 --> 02:16:11.240
Boardroom: Thank you. I will also add my thanks to everyone that was listed and involved.

903
02:16:11.240 --> 02:16:34.010
Boardroom: and also just wanted to highlight the fact that for both of the finalist teams that there are folks there that are local to the city of Berkeley, and I think that's also really special. It shows the commitment that people have to the city and bringing us good projects that will really do us proud. And I do want to thank everyone who submitted. And you know, for both teams. I know that

904
02:16:34.010 --> 02:16:51.099
Boardroom: this is going to be, you know, this project is really going to be excellent. So, I want to say thank you so much. As a D3 resident, as mayor of the city, this is something that we can all be very proud of

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today. So, thank you all very much. And with that, I will call for a vote.

905
02:16:52.059 --> 02:16:54.280
Boardroom: or I will entertain a motion.

906
02:16:54.500 --> 02:16:58.360
Boardroom: You want to make it? I move to approve the staff recommendations.

907
02:16:59.750 --> 02:17:04.250
Boardroom: Second. Okay, can we take the role on that, please?

908
02:17:04.660 --> 02:17:13.899
Boardroom: Okay, to approve the recommendation for the Ashby East Lot developer, there's two

909
02:17:14.020 --> 02:17:19.449
Boardroom: resolutions associated with that action. Councilmember Kesarwani.

910
02:17:19.459 --> 02:17:20.269
Rashi Kesarwani: Yes.

911
02:17:20.790 --> 02:17:34.380
Boardroom: Taplin? Aye. Bartlett? Yes. Trago? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Thank you.

912
02:17:37.450 --> 02:17:39.110
Boardroom: Thank you all so much.

913
02:17:40.320 --> 02:17:45.249
Boardroom: All right. Is there any public comment for items not listed on the agenda?

914
02:17:45.940 --> 02:17:46.709
Boardroom: That's right.

915
02:17:47.240 --> 02:17:48.739
Boardroom: Oh, yes, come on up.

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916
02:17:53.090 --> 02:17:54.600
Boardroom: Aye. Mayor?

917
02:17:54.740 --> 02:18:17.260
Boardroom: City Council, I wanted to know why you were continuing to allow SAHA to build in Berkeley when they have so many violations, code violations, fire department violations, lawsuits, including of their own employees going on, and no one is doing anything about it. I have contacted your office months ago. I am a SAHA tenant. I'm also disabled.

918
02:18:17.260 --> 02:18:19.060
Boardroom: It… there has been…

919
02:18:19.110 --> 02:18:28.689
Boardroom: Numerous harassment, numerous problems, ceilings caving in. I know of someone who has ridiculous cockroach issues.

920
02:18:28.780 --> 02:18:33.329
Boardroom: Three people's ceilings caved in in my building. You would think we live in a dump.

921
02:18:33.469 --> 02:18:44.540
Boardroom: This is the city of Berkeley, and no one is addressing this. I've had code enforcement come out for a year. This is my second building that I've had to have code enforcement come out for over a year.

922
02:18:45.889 --> 02:18:48.520
Boardroom: Is my second apartment in the same building?

923
02:18:48.629 --> 02:18:51.120
Boardroom: They do non-permitted work.

924
02:18:52.240 --> 02:19:07.010
Boardroom: I have pictures and videos. I have stacks and stacks of paperwork. I don't understand why the city of Berkeley, which is so proactive and is so for affordable housing, that they're doing nothing about this. Thank you. Thanks for your comment.

925
02:19:12.480 --> 02:19:20.500
Boardroom: We have 2 speakers online. First is kelly hammargren You are.

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926
02:19:22.969 --> 02:19:26.399
kelly hammargren: Can you hear me?

927
02:19:26.400 --> 02:19:30.190
Boardroom: Kelly, you're echoing.

928
02:19:30.860 --> 02:19:34.809
kelly hammargren: Why don't you take the other person?

929
02:19:35.049 --> 02:19:37.020
kelly hammargren: Okay, did it end now?

930
02:19:37.670 --> 02:19:39.730
Boardroom: I think so. Yes.

931
02:19:39.730 --> 02:19:40.709
kelly hammargren: Carol's gone.

932
02:19:42.270 --> 02:19:43.280
kelly hammargren: Okay.

933
02:19:43.280 --> 02:19:44.190
Boardroom: Yes, go ahead.

934
02:19:44.540 --> 02:19:55.119
kelly hammargren: All right. So on the 17th, at 4 o'clock you're going to have the special meeting on the proposed homeless ordinance.

935
02:19:55.590 --> 02:20:01.760
kelly hammargren: and you use. I don't know that any of you ever really take my book recommendations.

936
02:20:02.040 --> 02:20:09.420
kelly hammargren: But this was the book that we had for book club this month. We discussed it today, and it's called the man in the

937
02:20:09.600 --> 02:20:11.770
kelly hammargren: The man in the dog park.

938

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02:20:12.560 --> 02:20:18.590
kelly hammargren: Coming up close to homelessness, it's a really excellent book.

939
02:20:18.980 --> 02:20:26.239
kelly hammargren: And it turns the framing from what we usually think of from our perspective.

940
02:20:26.250 --> 02:20:41.359
kelly hammargren: to the person who's homeless. And it's really it's a short read. It's only like 186 pages. So Kathy Small and Ross Moore are the co-authors.

941
02:20:41.930 --> 02:20:49.140
kelly hammargren: and I would just highly recommend that you pick it up before the 17.th The man in the Dog Park.

942
02:20:50.430 --> 02:20:57.360
Boardroom: Okay, and the next… Non-agenda speaker is Della Luna.

943
02:20:59.570 --> 02:21:03.710
Della Luna (she/her) Huichun: Yes, I wanted to speak again about this, the crosswalk.

944
02:21:04.090 --> 02:21:06.470
Della Luna (she/her) Huichun: at Ashby Bart on Mlk.

945
02:21:08.310 --> 02:21:10.480
Della Luna (she/her) Huichun: I don't think that the drivers

946
02:21:10.900 --> 02:21:14.840
Della Luna (she/her) Huichun: Was considered, or, like, the rules of the roadway?

947
02:21:14.870 --> 02:21:33.419
Della Luna (she/her) Huichun: And so, if one's approaching that light, the new pedestrian walkway, and there's 4 cars in front of you, and then the lights start flashing yellow, there's 4 cars in front of you that could either stop or slow down, which there's… then there's 3 cars that could rear-end those cars in front of them, so I think that that's kind of like the stacking of traffic.

948

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02:21:33.420 --> 02:21:41.829
Della Luna (she/her) Huichun: And how when I'm driving through that, I have to be aware of what every driver is doing around me. And so and then plus the lights and then plus the sign.

949
02:21:41.840 --> 02:21:42.810
Della Luna (she/her) Huichun: And…

950
02:21:43.380 --> 02:21:51.900
Della Luna (she/her) Huichun: That all takes priority over what looking for a pedestrian, and I believe you all have put too many things in the roadway, and you're actually distracting the driver.

951
02:21:52.020 --> 02:22:02.230
Della Luna (she/her) Huichun: And I just think it should be reconsidered. There's too much going on there in that pedestrian crossway. It now looks like a railroad crossing, but there's been no education about how to cross there either.

952
02:22:02.590 --> 02:22:05.890
Della Luna (she/her) Huichun: So the pedestrians just stand there, they don't know if they should go.

953
02:22:05.890 --> 02:22:07.889
Boardroom: Thanks for your comment, your time's up.

954
02:22:08.450 --> 02:22:09.240
Boardroom: Okay.

955
02:22:10.770 --> 02:22:12.189
Boardroom: Anyone else? That's it.

956
02:22:12.360 --> 02:22:25.300
Boardroom: okay is there a motion to adjourn okay second can we take a can we take a the roll please you guys sorry okay to adjourn councilmember kisarwani.

957
02:22:25.300 --> 02:22:26.060
Rashi Kesarwani: Yes.

958
02:22:26.510 --> 02:22:39.849

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Boardroom: Taplin? Aye. Bartlett? Yes. Traga? Aye. O'Keefe? Yes. Blackaby? Yes. Munapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, Meetings Adjourned. Meetings Adjourned. Thank you all very much.

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